

नेशनल फर्टिलाइजर्स लिमिटेड, बठिंडा-151003

F&A विभाग

Ref. No. NFB/PV/2025-26/

Dated: **01.03.2025**

Name of the Work: Appointment of Physical Verifier for Stock Verification/Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for the F.Y. 2025-26.

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NOTE:

1. **Parties are requested to see that all the papers of tender documents issued to them are intact as per above Index**
2. **All the pages of tender documents shall be signed & stamped by the party.**
3. **All the tender digitally signed documents shall be uploaded on GeM portal.**

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NOTICE INVITING TENDER

Tender through GeM Portal are invited from experienced and financially sound parties in "Two Part Bid System" for the work of **“Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for the F.Y. 2025-26”** as per following:

Sr.No	NIT No.	Overall Time of Completion	Estimated Cost of work	Last date & time for		
				Issue of Tender documents	Submission of sealed tenders	Opening of Tenders(Technical Bids)
1.	NFB/Phy.Veri/2025-26 Dated__-__-2025.	12 months	₹54,999/- Inclusive of GST @18%	Up to ____ Hrs. on ----.____	Up to ____ hrs. on ____	At ____hrs. on _____

NFL reserves it's right to open the price bids of only such parties who are found to be meeting the eligibility criteria based on the documents submitted by him/them in the technical bids. NFL further reserves it's right to accept / reject any / all tenders in whole or in part without assigning any reason thereof. Conditional tenders are liable to be rejected.

NFL shall not be responsible for delay, loss or non-receipt of tender document sent by post.

The offers received after scheduled date and time of submitting the offer would be out rightly rejected.

For & on behalf of
National Fertilizers Limited, Bathinda

(Signature NIT Issuing Authority)

Annexure I

COVERING LETTER OF NIT

To

M/s _____

Subject: NIT for “**Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for the F.Y. 2025-26**”.

Dear Sir,

Sealed tender are invited for the work as detailed below:

1)	Name of Work:	Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for the F.Y. 2025-26.
2)	Estimated Value of the work:	₹54,999/-Inclusive of GST @18%.
3)	Validity of Tender	120 days from the date of opening of Technical Bids for the acceptance.
4)	a) Validity / Period of Contract	12 Months from the date of award of the Contract and may be extended to another 12 months(Renewal of assignment for the next 12 months is subject to satisfactory performance of the party)
	b) Time of Completion:	12 Months as specified in Special Terms and Conditions (Annexure-XVI) and Scope of work
5)	Last date and time for issue/download of e-tenders:	_____ up to _____ Hrs.
6)	Last date and time of submission/receipt of e-tenders:	_____ up to _____ Hrs.
7)	The date and time of Opening of e-Tenders:	_____ up to _____ Hrs.
8)	Place of receipt and opening of e-Tenders:	Office of Chief Manager(F&A), NFL Bathinda Unit

- 9) All requests for interpretation, clarification & queries in connection with tender shall be addressed, in writing to Chief Manager (F&A), NFL-Bathinda Unit at least 7 (Seven) days prior to the closing date of the tender.
- 10) The Tenderer may visit the site, acquaint himself fully of the job and site condition, if required, and no claim, whatsoever, will be entertained on the plea of ignorance of difficulties involved in the execution of the work.
- 11) The rates should be quoted item wise for the complete Scope of Work as per Performa ‘Schedule of Rates’. The rates should be quoted only in the units given in the Schedule of Rates and should be indicated both in words as well as figures. The rates quoted shall be valid for 120 days from the date of opening of technical bid for the acceptance.

- 12) In case of any discrepancy, the rates quoted in words shall be treated as final. Any corrections made in the prices shall be authenticated with signatures at all places. The tenderer shall have to submit the Schedule of Rates Performa duly filled in, failing which their Price bid will not be acceptable.
If some discrepancies are found between the rates given in the words and figures or the amount shown in the tender, the procedure mentioned under Evaluation criteria (Annexure-VIII) shall be followed:
- 13) The tenderer shall quote single rate against each item and not the multiple rates in the Schedule of Rates. Any tender with the multiple rates quoted will be summarily rejected. Price should be quoted strictly as per the Performa enclosed for Schedule of Rates.
- 14) National Fertilizers Limited reserves the right to reject any or all tenders without assigning any reason whatsoever and are not bound to accept the lowest tender. The tender can be split between two or more tenderer without assigning any reason thereof as per the requirement on case-to-case basis.
- 15) Incomplete tenders or tenders not accompanied with the required Details / Documents / Tender fee/ EMD or Tenders received late would be liable to be rejected without any further reference whatsoever.
- 16) Submission of Tenders:
 - a. No oral, telephonic, fax or telegraphic tenders or modification thereof will be entertained.
 - b. Tender documents should be submitted along with duly filled in all Annexures.
 - c. The tender will be divided in two parts:
 - i. Technical and commercial bid
 - ii. Price bid

Part-1: Under this part tenderer will upload scanned copy of documents as under:

- a) Signed copy of NIT and Complete Tender Documents as token of acceptance of terms & conditions.
- b) Duly filled Declaration Forms-I, II & III (Annexure-II, III & IV) with supporting documents.
- c) Duly filled Annexure-V for Registration for GST.
- d) Affidavit as per Annexure-VI on Non-Judicial Stamp Paper of Rs. 50.000.
- e) Notarized/Certified copy of Power of Attorney/Authorization in name of person who has signed the tender documents/bid.
- f) Copy of the PAN card.
- g) Documentary proof of GSTIN registration No./Accounting code.
- h) Affidavit for proprietorship as per Annexure-XI on Non-Judicial Stamp Paper of Rs. 50.000.
- i) Bank Cancelled cheque/bank details for bank A/C particulars etc.
- j) Documents required as per Eligibility Criteria (In case parties are not pre-qualified).

Part-2: This part should only contain the “Schedule of Quantities & Rates/Price Bid” with price given in respective columns against each item, as enclosed herein, duly completed and signed & stamped on each page by the tenderer.

- 17) Opening of tender: The tender shall be opened as under:

Part-1: Containing “Technical Bid” will then be opened. Necessary clarifications if required shall be taken from the bidders.

- Part-2:** Containing “Price Bid” will be opened if technical bid found in order on the same day or at a later date, which shall be intimated to the Tenderers.
- 18) NFL reserves its right to open the Price bids of only such tenderers who are found to be meeting the eligibility criteria based on the documents submitted by him/them in the technical bids.
 - 19) Evaluation of offer shall be on overall L-1 basis.
 - 20) All pages shall be initialled at the lower right hand corner and signed wherever required in the tender papers by the tenderers or by a person holding power of attorney/ authorization authorizing him to sign on behalf of the tenderer before submission of tender. All corrections and alterations in the entries of tender paper will be signed in full by the tenderer with date. No eraser or overwriting is permissible.
 - 21) No condition or deviation should be mentioned by tenderer in Price Bid. Price Bids with any condition or deviation shall liable to be rejected.
 - 22) The prospective tenderer having any common Partner / Director / Managing Director etc. Or having any other common criteria shall be considered as sister /group / Associates Company. In such cases only one of them will be eligible for participating in the tender.
 - 23) While submitting the offer, bidders may ensure that tender documents /offer have been signed by authorized signatory of the company. Subsequent withdrawal of offer / non-acceptance of orders placed based on the offer submitted by them will not be entertained on the ground that the offer was not signed by the authorized person.
 - 24) One person will be allowed to represent only one company during discussion/negotiation with NFL. If same person is representing different companies with authorization letter from more than one company, such person will be allowed to represent only the first company called for negotiations.
 - 25) NFL reserves the right to postpone the tender opening date and / or time and will intimate all the tenderers well in time, of such postponement along with notice of revised opening date and time.
 - 26) In case, due to some unforeseen circumstances, the date of receiving / opening of the tender happen to be a holiday / closed day, the tender will be received / opened on the next working day.
 - 27) More than one quotation in a single sealed envelope will not be considered. Not more than one tender shall be submitted by a tenderer or by a firm of tenderers. Further, more than one bid shall also include two or more bidders having common power of attorney holder. No two or more concerns in which an individual is interested as a proprietor and / or a partner shall tender for the execution of the same works. If they do so, all such tenders shall be liable to be rejected.
 - 28) The tender is non-transferable. Unsigned tenders shall be out-rightly rejected.
 - 29) NFL further reserves its right to accept / reject any / all tenders in whole or in part without assigning any reason thereof. Conditional tenders are liable to be rejected.
 - 30) NFL shall not be responsible for delay, loss or non-receipt of tender document sent by post.
 - 31) The personnel of the verifier shall not enter into any unlawful activity within the premises of NFL and have a good character.
 - 32) In case the tender is received in open condition, then the entire risk for loss of confidentiality shall be with the party. NFL shall not be responsible on this account whatsoever.
 - 33) The party shall not appoint any sub company / agency to carry out any obligation under the contract without prior written permission from NFL. If at any time such a discrepancy is detected, the contract shall stand terminated without any notice and the security deposit shall be forfeited.
 - 34) The offers received after scheduled date and time of submitting the offer would be out rightly rejected.

- 35) If the tenderer(s) expire(s) after the submission of his / their tender or after the acceptance of his / their offer, NFL shall deem such tender cancelled. If a partner of a firm expires after the submission of their tender or after the acceptance of their tender, NFL shall deem such tender as cancelled, unless the firm retains its character.
- 36) NFL will have the right to issue addendum to tender documents to clarify, amend, modify, supplement or delete any of the conditions, clauses or items stated. Addendum so issued will form part of original invitation to tender.
- 37) If a tenderer resorts to any frivolous, malicious or baseless complaints / allegations with intent to hamper or delay the tendering process or resorts to canvassing/ rigging/ influencing the tendering process, NFL reserves the right to debar such tenderer from participation in the present / future tenders up to a period of 2 years.
- 38) Any revision, clarification, corrigendum, time extension, etc. to this Tender Document will be hosted on the above-mentioned website(s) only. Bidders are requested to visit the website regularly to keep themselves updated.
- 39) Throughout the Tender Documents, the terms 'Bid', 'Tender' & 'Offer' and their derivatives [Bidder/Tenderer, Bid/Tender/Offer etc.] are synonymous.
- 40) "Bidder shall not be affiliated with a firm or entity:
 - i. That has provided consulting services related to the work to the NFL during the preparatory stages of the work or of the project of which the works/services forms a part of. OR
 - ii. That has been hired (proposed to be hired) by the NFL as an Engineer/ Consultant for the contract."
- 41) Eligibility of any bidder from a country which shares a land border with India shall be dealt in accordance with the provisions mentioned in Annexure-XII.
- 42) The Bidder shall submit Power of Attorney/ Authorization in favour of the authorized signatory(s) of the Bid. In case of partnership firm, one or more of the partners of the firm or any other person (s) shall be designated as the authorized person (s) on behalf of the firm, who will be authorized by all the partners to act on behalf of the firm through a "Power of Attorney", specially authorizing him / them to submit & sign the tender, sign the agreement, receive payment, witness measurements, sign measurement books, make correspondences, compromise / settle / relinquish any claim (s) preferred by the firm, sign "No Claim Certificate", refer all or any dispute to arbitration and to take similar such action in respect of the said tender / contract. In case of Company, Notarized/Certified copy of Authorization/Power of Attorney (backed by the resolution of Board of Directors) in favour of the individual to sign the tender on behalf of the company and create liability against the company should be submitted. Such "Power of Attorney" should be stamped and authenticated by a Notary Public or by Magistrate and submitted along with the tender."
- 43) In case there is any change in status of the declaration prior to award of contract, the same has to be promptly informed to NFL by the bidder. It shall be the sole responsibility of the bidder to inform about their status on due date of submission of bid and during the course of finalization of the tender. Concealment of the facts shall tantamount to misrepresentation of facts and shall lead to action against such Bidders.
- 44) NFL reserves the right to verify all statements, information and documents submitted by the bidder in his tender offer, and the bidder shall, when so required by NFL, make available all such information, evidence and documents as may be necessary for such verification. Any such verification or lack of such verification, by NFL shall not relieve the bidder of its obligations or liabilities hereunder nor will it affect any rights of NFL there under."

- 45) These letter/ instructions shall form part of the contract document and shall be signed and returned along with the tender documents.
- 46) The Tender shall be addressed to Chief Manager (F&A), National Fertilizers Limited, Bathinda.
- 47) The tenderer shall quote in English both in figures as well as in words, the rates and amounts tendered by him, on the form of schedule of rates forming part of the tender documents; in such a way that interpolation is not possible. The amount for each item shall be worked out and entered in the tender and requisite totals shall be given for all items. The tenderer shall duly sign the tendered amount entered in the tender for the work.
- 48) The tenderer as a token of acceptance of NIT terms and conditions shall sign all pages of NIT and Annexures.
- 49) The following documents forming the contract are to be taken as mutually explanatory of one another and in case of discrepancy the following order of preference shall be observed: -
- A. Agreement
 - B. Work Order
 - C. Letter of intent
 - D. NIT
- i. Technical Terms and Conditions and Scope of Work
 - ii. Special terms and conditions etc.
 - iii. General Terms & Conditions
- 50) The tenderer shall certify that none of their group/sister concern/ partnership firm is participating in this tender. They will also submit an undertaking that in case of concealment of any facts, if detected later on, the bidder along with group/ sister concern/ partnership firm participated in this tender, NFL reserves its right to take action as per General Terms and Condition, Annexure-X.

Thanking you,
Yours Sincerely,
For& on behalf of
National Fertilizers Limited

(ANUJ KUMAR SINHA)
CHIEF MANAGER (F&A)

Encl:-

1. Annexure II to Annexure XVII
2. Schedule of Quantities.

ANNEXURE –II

DECLARARTION-FORM-I

Ref. No.

Dated.

To,

CHIEF MANAGER (F&A)
National Fertilizers Ltd.
Bathinda

Subject: Tender No. NFB/_____Dated: __. __. 2025

Name of the Contract: _____.

I/We _____ have read the conditions of tender attached hereto and agree to abide by such conditions. I/We offer to do the job of “_____” work at the rates quoted in the attached Schedule of Rates and in accordance with the specifications, standards and instructions in writing of the Engineer-in-charge of M/s. National Fertilizers Limited and hereby bind myself/ourselves to complete the work schedule and progress of work.

I/We further agree to abide by the conditions of contract and to carry out all work within the specified time in accordance with specifications of materials and workmanship and instructions referred to in the Notice Inviting Tenders.

I / We agree to accept payment by ECS / EFT from your Bank i.e. SBI, Bathinda, Branch IFS Code: SBIN0003591. Details of my/our Bank A/c No. are as under:

Bank A/c No. (In SBI / any Nationalized Bank)	
Type Account (Current A/c or Saving A/c)	
Name of the Bank	
Address of the Bank & Branch	
Branch Code:	
IFSC Code	

In case of acceptance of the tender by National Fertilizers Limited, I/We find myself/ourselves to execute the contract as per the conditions mentioned in the tender documents.

Thanking you

Yours faithfully

For M/s _____
(Signature of Party/Tenderer with SEAL)
Address: _____

DECLARATION FORM-II

Annexure-III

The following declaration to be signed by Party and to be submitted along with required documents which would be duly self- certified:

Sr. No.	DESCRIPTION	YES / NO(If Yes, give the following details)		
		Name & Design. of the Employee	Place of Posting	Relation with the Employee
1	If a Tenderer has relation(s) whether by blood or otherwise with any of employee(s) of NFL (Owner), the Tenderer must disclose the relation at the time of submission of Tender. NFL shall reserve the right to reject the Tender or rescind the Contract, if such information is found incorrect.			
2	<u>P.F. Registration No.</u> of the firm / company to be indicated along with Documentary proof thereof.			
3	<u>PAN No.</u> (Permanent Account Number) of the firm / company issued by Income Tax Deptt. along with Documentary Proof thereof.			
4	<u>GST Registration No.</u> of the firm / company issued by GST authorities along with Documentary Proof thereof.			
5	<u>Composite Dealer under GST:</u> Is the firm/company registered as a composite dealer under GST Act (Yes/ No)			
6	<u>ESI Registration No.</u> issued by ESI Authorities along with documentary proof thereof.			
7	<u>MSME Registration</u> If the firm is registered as Micro/Small/Medium Enterprises as per MSMED Act, 2006, the same may be confirmed by the tenderer and submit a photocopy (Self certified) of the registration certificate of relevant services,in support thereof. Otherwise it will be construed that the firm is not registered as per MSMED Act, 2006. (This contract is a Service contract)	Yes / No (If Yes, a Self certified copy of registration certificate to be submitted) (Not applicable on _____ contract)		
8	Type of Firm to be specified (Proprietor / Partnership / Limited Co. etc.)			
9	Name of the Firm			
10	Address of the Firm			
11	<u>Contact Details:</u> a) Name of the Person: b) Mobile number / Landline Number c) Email	<u>Contact Details:</u> a) b) c)		
12	Power of Attorney for submission of tender document, as applicable. Submitted	Yes / No		

Note: Please attach separate sheets for the details, wherever necessary.

Signature of the Party/ Tenderer with SEAL

Place: _____

Dated: _____

DECLARATION FORM-III

To,

CHIEF MANAGER (F&A)
National Fertilizers Ltd.
Bathinda

Subject : Tender No. NFB/_____Dated:__. __. 2025

Name of the Contract: _____.

Dear Sir,

1	<u>UNDERTAKING</u> a. I/We hereby confirm that Commercial Bid i.e. Price Bid is strictly as per Schedule of Quantities (Description/ Unit/Quantity of Items), Terms & Conditions and is also Un-conditional, including rebates offered. I/We shall have no objection for rejection of the offer, if found conditional. b. All the pages of NIT and GTC issued to us have been signed for its validity in token of its acceptance by us. c. It is confirmed that all the columns in the Price Bid, have been duly filled. d. I/We agree to evaluation of price bids and loading of GST under the terms of the NIT.
2	<u>ACCEPTANCE OF TENDER CONDITIONS</u> I/We have personally read and gone through the scope of work, General Terms and Conditions of Contract (G.T.C.) and Special Terms and Conditions of NIT for the subject work, and I/we accept all the terms & conditions as mentioned in the G.T.C & NIT without any reservation and shall abide by the same.
3	I/We declare that the information and documents submitted along with the tender by me/us are correct and I/we are fully responsible for the correctness of the information and documents, submitted by us. It is further certified that I/We will not get myself/ourselves registered under more than one name
4	I/We understand that in case of any information submitted by me/us is found to be false, forged or incorrect at any time during process for evaluation of tenders, it shall lead to forfeiture of the tender Earnest Money Deposit besides banning of business as per rules of NFL.
5	I/we also understand that if the certificates submitted by us are found to be false/forged or incorrect at any time after the award of the contract, it will lead to termination of the contract, along with forfeiture of EMD/SD and Performance guarantee besides any other action provided in the contract including banning of business as per rules of NFL.

Thanking you

Yours faithfully
For & on behalf of Party

Signature of the Party/ Tenderer with SEAL

Place: _____

Dated: _____

ANNEXURE - V

REGISTRATION OF GST NUMBER

Requirement of GST Number:

The bidders are required to obtain the valid GST No., if applicable, as per laid down provisions under GST Act and submit a copy thereof as documentary evidence. Further in case the registration is not applicable under GST Act the same may be confirmed and following undertaking may be given by bidder

UNDERTAKING

Whether Registration certificate obtained: Yes/No (tick whichever is applicable)

- a. In case Yes, copy of valid certificate enclosed.
- b. In case No, It is confirmed that registration under GST Act is not applicable.
- c. In case registration under GST Act becomes applicable during the currency of contract, same shall be obtained and copy of valid GST No. shall be submitted to the NFL.
- d. If the bidder is registered as a composite dealer under GST Act, the same may be confirmed by the bidder.

(Signature & stamp of bidder)

ANNEXURE- VI

(An Affidavit in **original** on Non-judicial Stamp Paper of Rs.50.00 duly attested by Notary)

AFFIDAVIT

With reference to NIT No. **NFB/**_____ **Dated** __.__.2025 of National Fertilizers Ltd., Bathinda for the work of _____, I,

_____ S/o Sh. _____ R/o _____ do hereby solemnly affirm and declare as _____ (Proprietor / Partner / Authorized signatory of the firm) on behalf of M/s _____ asunder :-

- i) That my / our firm / sister concern etc. has not been black listed, debarred, de-listed or put on holiday by any Institutional Agency / Government Department / Public Sector Undertaking for participating in the Tender, in last 3 years.
- ii) No other Firm / Sister Concerns / Associates belonging to the same group are participating / submitting the Tender for this job.
- iii) That information furnished by me / us in respect of the above tender is true and correct and nothing has been concealed. In case any of the information is found to be false and /or incorrect at any stage, NFL shall be at liberty to take the necessary action as deemed fit.

DEPONENT

Dated: _____

VERIFICATION

It is certified that the above contents / facts are correct and true to the best of my knowledge and belief and nothing has been concealed therein.

DEPONENT

Place _____

Date: _____

ELIGIBILITY CRITERIA

The bidders, in order to become eligible to participate in the bid, need to meet the following eligibility criteria and submit the self-certified documentary evidences in support thereof, failing which price bid shall not be opened.

S. No.	Particulars	Supporting documents
1.	No. of years of Firm experience	Copy of certificate of incorporation from ICAI
2.	No. of Partners	Copy of certificate of incorporation from ICAI
3.	Experience of Stock verification in preceding Three FYs (i.e. 2021-22, 2022-23 & 2023-24).	Appointment letter issued by company showing the name of plant.
4.	Professional Receipts of the firm	Statement of Un-audited / Audited Profit & Loss signed by the member stating membership no. of such firm with UDIN for last 3 Years (i.e. 2021-22, 2022-23 & 2023-24).

NOTE:

1. In case of newly formed partnership firm, the credentials of individual partners from previous propriety firm(s) or dissolved previous partnership firm(s) or split previous partnership firm(s), shall be considered only to the extent of their share in previous entity on the date of dissolution / split and their share in newly formed partnership firm. For example, a partner A had 30% share in previous entity and his share in present partnership firm is 20%. In the present tender under consideration, the credentials of partner A will be considered to the extent of 0.3×0.2 * value of the work done in the previous entity. For this purpose, the tenderer shall submit along with his bid all the relevant documents which include copy of previous partnership deed(s), dissolution deed(s) and proof of surrender of PAN No. (s) in case of dissolution of partnership firm(s) etc.
2. In case of existing partnership firm, if any one or more partners quit the partnership firm, the credentials of remaining partnership firm shall be re- worked out i.e., the quitting partner(s) shall take away his credentials to the extent of his share on the date of quitting the partnership firm (e.g. in a partnership firm of partners A, B & C having share 30%, 30% & 40% respectively and credentials of Rs 10 crore; in case partner C quits the firm, the credentials of this partnership firm shall remain as Rs 6 crore). For this purpose, the tenderer shall submit along with his bid all the relevant documents which include copy of previous partnership deed(s), dissolution deed(s) and proof of surrender of PAN No.(s) in case of dissolution of partnership firm(s) etc.
3. In case of existing partnership firm if any other partner(s) joins the firm, the credentials of

partnership firm shall get enhanced to the extent of credentials of newly added partner(s). on the same principles as mentioned in item 1 above. For this purpose, the tenderer shall submit along with his bid all the relevant documents which include copy of previous partnership deeds, dissolution/splitting deeds and proof of surrender of PAN No.(s) in case of dissolution of partnership firm etc.

4. Any partner in a partnership firm cannot use or claim his credentials in any other firm without leaving the partnership firm i.e., In a partnership firm of A&B partners, A or B partner cannot use credentials of partnership firm of A&B partners in any other partnership firm or propriety firm without leaving partnership firm of A&B partners.
5. In case a partner in a partnership firm is replaced due to succession as per succession law, the proportion of credentials of the previous partner will be passed on to the successor.
6. If the percentage share among partners of a partnership firm is changed, but the partners remain the same, the credentials of the firm before such modification in the share will continue to be considered for the firm as it is without any change in their value. Further, in case a partner of partnership firm retires without taking away any credentials from the firm, the credentials of partnership firm shall remain the same as it is without any change in their value.
7. In a partnership firm "AB" of A&B partners, in case A also works as propriety firm "P" or partner in some other partnership firm "AX", credentials of A in propriety firm "P" or in other partnership firm "AX" earned after the date of becoming a partner of the firm AB shall not be added in partnership firm AB.
8. In case company A is merged with company B, then company B would get the credentials of company A also."

Signature of the Tenderer / Party with Seal

ANNEXURE-VIII

EVALUATION CRITERIA

1. The contract shall be awarded on Composite L – 1 basis. However, in case, it is found that L-1 tenderer has quoted non-workable rates for one / more items due to which they become L-1, NFL reserves the right to reject such tender. This condition shall be applicable on next lowest tender (s) also.
2. If the tenderer does not quote rate of any item, it may be noted that for evaluation purposes the same shall be taken based on the highest rate quoted by the other tenderers. However, order shall be placed for the same item based on the lowest rate quoted by the other tenderers. In that case, the party shall have to execute that item(s), failing which action shall be taken as per terms & conditions of the contract.
3. Tenderer are required to quote their rates of the respective item of work as per the “UNIT” of Item mentioned in the Schedule of Quantities. If it is found that the party has quoted his rates against a particular item(s) by changing the “UNIT”, the such quoted rates of the party with the changed “UNIT” shall be ignored and treated as UNQUOTED RATE against that particular Item(s) and the tender shall be evaluated as Para 2 above.
4. The revised bids on due date of opening of the tenders, as per NIT, shall not be entertained. Where for any reason the due date and / or time of opening the tender is extended, intimation regarding revised tender opening date and time shall be given / displayed on the website, In case any of the parties, who have submitted offer earlier, submits revised offer, within extended period, their revised offer only will be considered for opening. However where techno-commercial negotiations are conducted with all the bidders to clarify the deviations vis-à-vis tender specifications/ requirements, which lead to changes in terms / conditions and / or technical specifications, the bidders shall be given a fair chance to revise their price bids accordingly.

However revision in prices, if any, may be through Add-on /Reduction on account of change in terms / conditions and / or technical specifications w.r.t. original price bid submitted by all the eligible bidders before opening of original price bid. While evaluating the offers, the impact of add on / reduction on the original price bid should be considered and no fresh revised price bid should be sought from bidders against the same tender.

5. If tenderer offers rebate unilaterally after due date and time of submission of tender/bids, it is not to be taken into account for evaluation purpose. But if that bidder/tenderer emerges as a lowest evaluated bidder/tenderer, the rebate so offered is to be taken into account for placement of order.
6. In case of the tie of total evaluated value of two or more bidders, the L-1 parties shall be asked to provide maximum discount and whosoever provides the maximum discount shall be awarded. In case even after discount there are multiple L-1 bidders, in such a case, lottery/draw system may be considered.

7. The rates should be quoted in words and figures. If some discrepancies are found between the rates given in the words and figures or the amount shown in the tender, the following procedure shall be followed:-
- When there is difference between the rates in figures and words, the rates which correspond to the amount worked out by the tenderer shall be taken as correct.
 - When the rates quoted by the tenderer in figures and words, tallies but the amount is incorrect, the rate quoted by the tenderer shall be taken as correct.
 - When it is not possible to ascertain the correct rate in the manner prescribed above, the rate as quoted in words shall be adopted.
 - In case of duplicity of any item in the schedule of quantities, the lowest quoted rate of the tenderer for such items will be operated in the contract.
 - When the amount of an item is not worked out by the tenderer, or if it does not correspond with the rates written either in figures or in words then the rates quoted by the tenderer in words shall be taken as correct.
 - In the event of any error occurring in the amount column of schedule of quantities as a result of wrong extension of unit rate and quantity, the unit rate shall be regarded as firm and extension (calculation of amount) shall be amended on the basis of the rate.
 - All errors in totalling in the amount column and in carrying forward total shall be corrected.
 - The total of various sections of schedule of quantities as amended shall be carried over to the general summary and the tendered sum amended accordingly. The tendered sum so altered shall, for the purpose of the tender, be substituted for the sum originally tendered and considered for acceptance. Any rounding off in the schedule of quantities or in general summary, by the tenderer, shall be ignored.

ANNEXURE-IX

DEFINITIONS OF TERMS

In the contract documents herein defined where the context so admits, the following words and expression will have the meanings assigned to them respectively:

1. "The OWNER or NFL" means the NATIONAL FERTILIZERS LTD., incorporated in India, having its registered office at SCOPE COMPLEX, Core No-III, 7, Institutional Area, Lodhi Road, New Delhi-110003.

"Bid" (including the term 'tender', 'offer', 'quotation' or 'proposal' in certain contexts) means an offer to supply goods, services or execution of works made in accordance with the terms and conditions set out in a document inviting such offers.

"The Bidder" (including the terms "tenderer", "consultant" or "service provider") in certain context means any eligible person, firm or company participating in the tendering process.

"Notice Inviting Tenders(NIT)" (including the term 'Invitation to bid' or 'request for proposals' in certain contexts) means a document and any amendment thereto published or notified by the owner, which informs the potential bidders that it intends to procure goods, services and/ or works.

2. The "ENGINEER-IN-CHARGE" shall mean the person designated as such by NFL and shall include those who are expressly authorized by him to act for and on his behalf for operation of this contract.
3. The "WORK" shall mean the works to be executed in accordance with the contract or part thereof as the case may be and shall include all extra, additional, altered or substituted works as required for purpose of the contract.
4. "CONSTRUCTION EQUIPMENT" means all appliances and equipment of whatsoever nature for the use in or for the execution, completion operation or maintenance of the work unless intended to form part of permanent work.
5. "SITE" means the areas in which the work is to be performed by the Party and shall include a part or portion of the site on which the permanent work is proposed to be constructed.
6. The "TENDER DOCUMENTS" shall consist of Short Tender Notice, General Instructions to the Tender, General Conditions of Contract, Special Conditions of Contract, Specifications, Drawings, Time Schedule Tender Form, Performa or Agreement Form Schedule of Rates, and Addendum/Addenda to Tender Documents.
7. "THE PARTY" means any person or persons or firm or company whose Tender has been accepted by NFL with the concurrence of the Owner, and the legal personal representatives, successors and permitted assigns of such person, persons firm or company. Party includes "Service Provider or Consultant" also.
8. The "CONTRACT" shall mean the Agreement between NFL and the Party for the execution of the

works including therein all contract documents.

9. The "SPECIFICATIONS" shall mean the various Technical specifications attached and referred to in the Tender documents. It shall also include the latest addition of relevant Indian Standard Specifications published before entering into contract.
10. "The DRAWINGS" shall include Maps, Plans and Tracings OR Prints thereof with any modifications approved, in writing by the Engineer-in-charge and such other drawings as may, from time to time, be furnished or approved in writing by the Engineer-in-charge.
11. The "CONTRACT DOCUMENTS" shall consist of Agreement, Tender documents as defined in Clause 6, 7 & 8 above, Acceptance of Tender and further amendments.
12. The "ALTERATION ORDER" means an order given in writing by the Engineer-in-charge to affect additions to or deletion from and alterations in the works.
13. The "COMPLETION CERTIFICATE" shall mean the Certificate to be issued by the Engineer-in-charge when the works have been completed to his satisfaction.
14. The "FINAL CERTIFICATE" in relation to a work means the Certificate issued by the Owner after the period of liability is over.
15. The "PERIOD OF LIABILITY" in relation to work means the specified period from the date of issue of Completion Certificate upto the date of issue of Final Certificate during which the Party stand responsible for rectifying all defects that may appear in the works.
16. "ZERO DATE" shall mean the date of issue of LETTER OF INTENT (LOI) or issue of WORK ORDER, whichever is earlier.
17. "GTC/GTCC" means General Terms & Conditions of Contract. "STC" shall mean Special Terms and Conditions of the contract.
18. Technical Terms and Conditions & Special Terms and conditions are succeeding to GTC. In case of any discrepancy or inconsistency between technical terms and conditions, special terms and conditions and general terms and conditions, the following order of preference shall be followed:
 - a) Scope of Work /Technical Terms and Conditions
 - b) Special Terms and Conditions
 - c) General Terms and Conditions (GTC/GTCC)
19. "Bid security" (including the term 'Earnest Money Deposit'(EMD), in certain contexts) means a security from a bidder securing obligations resulting from a prospective contract award with the intention to avoid: the withdrawal or modification of an offer within the validity of the bid, after the deadline for submission of such documents; failure to sign the contract or failure to provide the required security for the performance of the contract after an offer has been accepted; or failure to comply with any other condition precedent to signing the contract specified in the solicitation documents

20. "Class-1 local supplier" means a supplier or service provider, whose goods, services or works offered for procurement, meet the minimum local content as prescribed for 'Class-I local supplier' under the Public Procurement (Preference to Make in India), Order 20171;
21. "Class-II local supplier" means a supplier or service provider, whose goods, services or works offered for procurement, meets the minimum local content as prescribed for 'Class-II local supplier' but less than that prescribed for 'Class-I local supplier' under the Public Procurement (Preference to Make in India), Order 20172;
22. "Competent Authority" means the officer (s) who have been delegated the financial powers to approve the decision.
23. "e-Procurement" means the use of information and communication technology (specially the internet) by the procuring entity in conducting its procurement processes with bidders for the acquisition of goods (supplies), works and services with the aim of open, non-discriminatory and efficient procurement through transparent procedures;
24. "Enlistment" means including the name of the party in the list of after verification of credentials.
25. "Goods" includes all articles, material, commodity, livestock, furniture, fixtures, raw material, spares, instruments, machinery, equipment, industrial plant, vehicles, aircrafts, ships, medicines, railway rolling stock, assemblies, subassemblies, accessories, a group of machineries comprising an integrated production process or such other categories of goods or intangible products like software, technology transfer, licenses, patents or other intellectual properties purchased or otherwise acquired for the use of Government but excludes books, publications, periodicals, etc., for a library. The term 'goods' also includes works and services which are incidental or consequential to the supply of such goods, such as, transportation, insurance, installation, commissioning, training and maintenance
26. "Invitation to (pre-)qualify" means a document including any amendment thereto published by the procuring entity inviting offers for pre-qualification from prospective bidders;
27. "Invitation to Enlist" means a document including any amendment thereto published by the procuring entity inviting offers for bidder enlistment from prospective bidders;
28. "Local Content" means the amount of value added in India which shall, unless otherwise prescribed by the Nodal Ministry, be the total value of the item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value, in percent³.
29. "Non-Local supplier" means a supplier or service provider, whose goods, services or works offered for procurement, has local content less than that prescribed for 'Class-II local supplier' under the Public Procurement (Preference to Make in India), Order 20174
30. "Pre-qualification (bidding) procedure" means the procedure set out to identify, prior to inviting bids or along with tender, the bidders that are qualified to participate in the procurement;
31. "Pre-qualification document" means the document including any amendment thereto issued by a procuring entity, which sets out the terms and conditions of the pre-qualification bidding and includes the invitation to pre-qualify;
32. "(Public) Procurement Guidelines" means guidelines applicable to Public Procurement, consisting of under relevant context a set of- i) Statutory Provisions (The Constitution of India; Indian Contract Act, 1872; Sales of Goods Act, 1930; and other laws as relevant to the context); ii) Rules & Regulations (General Financial Rules, 2017; Delegation of Financial Power Rules and any other regulation so declared by the Government); iii) Manuals of Policies and Procedures for Procurement (of Goods; Works; Consultancy/ other services or any for other category) promulgated by the

- Ministry of Finance and iv) Procuring Entity's Documents relevant to the context (Codes, Manuals and Standard/ Model Bidding Documents);
33. "Procurement process" means the process of procurement extending from the assessment of need; issue of invitation to pre-qualify or to enlist or to bid, as the case may be; the award of the procurement contract; execution of contract till closure of the contract;
 34. "Procuring Entity" (including Procuring Authority or Employer) means any Ministry or Department of the Central Government or a unit thereof or its attached or subordinate office to which powers of procurement have been delegated;
 35. "Prospective bidder" means anyone likely or desirous to be a bidder;
 36. "Reverse auction" (or the term 'Electronic reverse auction' in certain contexts) means an online real-time purchasing technique utilized by the procuring entity to select the successful bid, which involves presentation by bidders of successively more favourable bids during a scheduled period of time and automatic evaluation of bids;
 37. "service" is defined by exception as any subject matter of procurement other than goods or works, except those incidental or consequential to the service, and includes physical, maintenance, professional, intellectual, training, consultancy and advisory services or any other service classified or declared as such by a procuring entity but does not include appointment of an individual made under any law, rules, regulations or order issued in this behalf. It includes 'Consultancy Services' and 'Other (Non-consultancy) Services';
 38. Subject matter of procurement" means any item of procurement whether in the form of goods, services or works or a combination thereof;
 39. "Works" refer to any activity, sufficient in itself to fulfill an economic or technical function, involving construction, fabrication, repair, overhaul, renovation, decoration, installation, erection, excavation, dredging, and so on, which make use of a combination of one or more of engineering design, architectural design, material and technology, labour, machinery and equipment. Supply of some materials or certain services may be incidental or consequential to and part of such works. The term "Works" includes (i) civil works for the purposes of roads, railway, airports, shipping-ports, bridges, buildings, irrigation systems, water supply, sewerage facilities, dams, tunnels and earthworks; and so on, and (ii) mechanical and electrical works involving fabrication, installation, erection, repair and maintenance of a mechanical or electrical nature relating to machinery and plants.

ANNEXURE-X

GENERAL TERMS & CONDITIONS (GTC & GTCC)

- 1.1.0.** The execution of the work may entail working in all the site and weather condition and no extra rate will be considered on this account. The party may have to carry out the jobs to work round the clock as per our requirement to be decided by Engineer in- charge and the Party should take this aspect into consideration for formulating his rates and quotation. No extra claim/overtime will be paid on this account.
- 1.2.0.** Electricity, Water and Service Air will be provided free of cost at one point as per requirement of the job. All lifting tools & tackles are to be got tested under the Competent Person engaged by State Government from time to time and the certificates duly verified by Competent Authority are to be submitted to the Department before taking up the job.
- 1.3.0.** Suitable accommodation will be provided for the party or his authorized representative on chargeable basis, if available, NFL may allot land for putting temporary Godown/ workshop for making storage, work site by the party, free of cost.
- 1.4.0** The party shall have to make his own arrangements for all Tools & Tackles, Skilled and Unskilled labours etc. required for the job. The work is subject to inspection at all time by the Engineers-in-charge and the Party shall have to carry out the work to the entire satisfaction of the Engineer-in-charge.
- 1.5.0** Sub-Contracting of the job will not be allowed without prior written permission of the owner (NFL). If sub-contracting is allowed by Owner in full or part, the party shall be solely responsible for paying each Sub-Party and any other person to whom any amount is due from Party for services, materials or supplies otherwise related to the Work. Party shall take all reasonable steps and actions to ensure that such services have been or will be properly performed.

Owner shall not be deemed by virtue of the Contract to have any contractual obligation to or relationship with any Sub Contractor. The responsibility of successful completion of work by subcontractor shall lie with Contractor. Sub- contracting will in no way relieve the Contractor to execute the work as per terms of the Contract.

1.6.0. PAYMENT OF TAXES AND DUTIES

- 1.6.1** The rates to be quoted by the tenderer should be inclusive of all applicable taxes, duties, levies and GST. Statutory deductions on account of Income Tax at source, at the applicable rates of the Gross Value of the Bill shall be made from the Party's monthly bills for depositing the same with respective Statutory Authorities as per the provision of the respective Acts and guidelines issued by Govt. of India. No request for increase / decrease or inclusion of any tax shall be entertained afterwards.
- 1.6.2** The rates quoted for materials should be on F.O.R. basis and are inclusive of all taxes. No GST will be paid as extra.

1.6.3 Addition / deletion of taxes imposed by the State Governments / Central Government after submission of tender documents and during contractual period shall be to NFL's account. Any subsequent change in the rate of GST shall be to NFL's account during contractual period only.

1.6.4 The Total Contract Value shall be inclusive of all applicable taxes, duties, levies and GST.

- a. The successful tenderer who is liable to be registered under CGST/IGST/UTGST/SGST Act shall submit GSTIN along with other details required under ST/IGST/UTGST/SGST Act to NFL immediately after the award of contract, without which no payment shall be released to the party. The party shall be responsible for deposit of applicable GST to the concerned authority.
- b. NFL shall pay GST as per provisions of GST Act. To remain competitive, bidders are advised to work out their rates excluding the impact of taxes paid on the input materials to be used in execution of contract as the same shall be set off in the form of input tax credit against GST.
- c. Party shall issue the taxable invoice in the manner prescribed under the GST Act within 30 days from the date of successful completion of job/contract in case of full & final payment against 1st & final bill and within 30 days of billing period in case of annual rate contracts having provision for monthly R/A bills. In case of any difference between the taxable/assessable value / or tax charged in the tax invoice is found the party shall issue credit/debit note as the case may be in the manner specified in the Act, failing which NFL may withhold the payment till the rectification of such difference. Up loading of taxable invoice and credit/debit note shall be done by the party strictly within the period prescribed in GST Act.
- d. In the event input tax credit of the GST charged by the party is denied by the tax authorities to NFL, then NFL shall be entitled to recover such amount from the party by way of adjustment from the next invoice/Security Deposit. In addition, to the amount of GST, NFL shall also be entitled to recover interest and penalty, in case it is imposed by the tax authorities on NFL.

1.6.5 Liability of NFL shall be restricted to the amount of GST only, and any interest / penalty etc. shall be to the party's account.

1.6.6. Nature of Contract and Applicable GST Rates: Rates & Guidelines shall be applicable as notified by the Central Govt. from time to time.

1.6.7. As per GST, the liability towards payment of GST lies with the service provider, so NFL is not responsible for any non-compliance of the GST Law by the tenderer. However, in case of services notified for liability of payment of GST, under Reverse Charge Mechanism, on the part of service receiver, the Company (NFL) shall comply with the same as the service receiver.

1.7.0. The rates quoted by the tenderer will be firm for the currency of the contract period including extension if any and will not be subjected to escalation irrespective of any increase what so ever, except where escalation clause is specifically mentioned in the tender document.

1.8.0. Statutory Provision shall be followed and applicable even if occurred after placement of W.O. but did not exit at the time of Tender. However additional statutory implication levied by State / Central Govt after last date of submission bid shall be to NFL account and shall be reimbursed on submission of proof of payment by the Contractor.

1.8.1. BID VALIDITY:

The bid should be kept valid for acceptance for a period of **4 months (120) days** from the date of

opening of tender/Technical Bid. A bid valid for shorter period may be rejected by the Owner as being non-responsive.

Under the exceptional circumstances, prior to expiry of the original Bid validity period, the Owner may request the Bidder for a specified extension in the period of validity. The request and the responses thereto shall be made in writing or by E-mail.

In the event of Owner seeking extension of period of validity of the Bids, the validity of EMD shall also be suitably extended.

A Bidder agreeing to the request of Owner seeking extension will not be required nor permitted to modify his bid, and will be required to extend the validity of his EMD correspondingly.

1.9.0. The following tenders will be liable to be rejected:

- a) Tenders submitted by Tenderer who resort to canvassing.
- b) Tenders, which do not fulfil any of the conditions, laid down in the Tender documents or are incomplete, in any respect.
- c) Tender, which contain uncalled for remarks or any alternative additional conditions.
- d) Offer received after schedule date & time of submitting the offer would be out rightly rejected.

1.9.1. The company reserve the right to accept the lowest or any other Tender in part or in full or award parallel contracts or reject all OR any of the Tender without assigning any reasons.

1.10.0. If the tenderer has relations whether by blood or otherwise with any of the employees of the NFL, the tenderer must disclose the relation in the Form of Declaration attached, at the time of submission of tender failing which NFL shall reserve the right to reject the tender or rescind the Contract. It shall also be certified by the tenderer that none of NFL's ex-employee is employed with them. (In case any ex-employee of NFL is employed, furnish details separately).

1.11.0. The party may employ such employees/ labours as he may think fit and the employees so employed should be employees of party for all purposes whatsoever and shall not be deemed to be in the employment of NFL for any purpose whatsoever. The party shall abide by all rules, laws and regulations that may be in force from time to time regarding the employment or conditions of service of the employees. If under any circumstances whatsoever, NFL is held responsible in any manner whatsoever for the default or omission on the part of the Party in abiding by the aforesaid rules, regulations and laws or held liable or responsible to the employees of the party in respect of any matter whatsoever and called upon to make payments on that account, NFL shall be reimbursed by the party for the same as also any other expenses costs and charges incurred by NFL in any proceeding or litigation arising out of any claim, demand or act on the part of the employees of the party, NFL shall be entitled to claim, demand or compensation from the party in that event. NFL shall also be entitled to recover the aforesaid amount from the Party that may become due and payable to Party.

1.12.0. Interested tenderer after studying the tender documents carefully, may obtain necessary clarifications, if any in writing before tendering, Submitting of tender implies that the Tenderer has obtained all the clarifications required. No claim on ground for want of knowledge in any respect will be entertained. No claim for extra charge consequent on any misunderstanding or otherwise will be allowed.

1.13.0. The Party shall be liable to the company for any omission or Commission on his part or on the part of his employees thereby causing any loss, damage or inconvenience to the company.

1.14.0. The Party shall make his own arrangement for removal of old as well as unused material, including packing materials and empty cases free of cost from work site to the place indicated by the Engineer-in-charge after completion of work and nothing extra will be paid.

1.15.0. The decision of Engineer-in-charge in regard to all matters relating to the Tender and for determine the category of work with reference to material of an item not mentioned in scope of work shall be final.

1.16.0. QUANTUM OF JOB: Estimated value of work has been worked out on technical assessment / on the basis of job executed in past. NFL will not give any guarantee for minimum billing, minimum quantum of work during the period / currency of the contract.

1.17.0. If the Party is unable to execute the work any loss incurred by the company in this respect, will be, to the Party's account. The company may also terminate the contract after giving a notice, if in its opinion; the work under the contract is not being done to its satisfaction. The Company will also have right to get the job done by a third party at the risk and cost of the Party till the expiry of the period of the contract and debit the cost plus 25% to the Party.

1.18.0. VALIDITY OF THE CONTRACT:-

- a) The Contract shall remain valid for a period as specified in STC/NIT reckoned from the date of its award. The job can therefore, be got done any time during the tenure of the contract. Normally Notice to 7 days be given for starting the job but the Party should be able to mobilize within 24 hours, if the necessity so arises.

1.19.0. FORCE MAJEURE:-

The terms and conditions agreed upon under the contract shall be subject to Force Majeure. Neither the party nor NFL shall be considered in default in the performance of their obligation contained therein, if such performance is prevented or delayed or restricted or interfered with by reason of War, Hostilities, Acts of Public Enemy, Civil Commotion, Strike, Lockouts, Epidemics/Pandemics, Accidents, Fires, Explosions, Flood, Earthquake, regulation or ordinance or requirement of any Government or any sub-division thereof or authority or representative of any such Govt., and/or due to technical snag/reasons or any other Act whatsoever, whether similar or dissimilar to those enumerated beyond the reasonable control of the parties hereto or because of any act of GOD. The party so affected, upon giving prompt notice to other party of such conditions and cause thereof from within 15 (Fifteen) days of occurrence of such event, shall be excused from such performance to the extent of such prevention, delay, restriction or interference for the period it persists provided that the party so affected shall use its best efforts to avoid or remove such causes of non- performance if possible and shall continue performance hereunder with the utmost dispatch whenever such causes are removed. If the performance in whole or in part of any obligation under this contract is prevented or delayed by reason of any such event for a period exceeding 90 (Ninety) days, either party may at its option terminate the contract by giving notice to the other party. For delays arising out of Force Majeure neither NFL nor the Party shall be liable to pay extra costs or to make good any losses incurred consequent to the happening of any of the event, provided it is mutually established that Force Majeure condition did actually exist.

1.20.0. LOSS TO PLANT DURING EXECUTION:

Any damage or loss caused to plant Equipment etc. during execution of this contract will be made good by the party at his own cost and risk.

1.21.0. NFL shall have power to make any alteration in, omission from, addition to, or substitutions for original Specifications and instructions which may be considered necessary, during the progress of work and Party shall have to carry out the work in accordance with any instruction which may be given to him in writing duly signed by Engineer-in-charge. Such alteration, omission, additions, substitutions, shall not invalidate the contract and any altered, additional or substituted work which the Party may be directed to

do in the manner above specified as a part of the work, shall be carried out by the Party on the same condition in all respects on which he has agreed to do the main work.

1.22.0. If the rates for the additional altered or substituted work are specified in the contract for the work. The Party is bound to carry out the additional, altered or substituted work at the same rate as per specifications in the rate contract for that work.

a) In the event the extra or substituted items of the work does not fall in category as above, the cost will be calculated on the basis of actual labour and consumable materials utilized for the job. The quoted rates will be inclusive of overhead and profit. The quantum of labour and consumable material used will be assessed by the Engineer-in-charge, whose decision in this respect will be final and binding upon the Party. The party will be required to obtain prior approval of NFL for rates payable to him for such extra items.

b) In case, the Party fails to do the extra and/or substituted work. NFL will have the option to get the work done through another agency at the Parties' risk and cost.

1.23.0. TERMS OF PAYMENT:

a) Payment of monthly running account bill complete in all respect shall be made after making necessary recoveries as per contract within 30 days of receipt of bill by NFL, complete in all respects.

Payment of final bill shall be released within 60 days or otherwise stipulated in the NIT/WO after receipt of bill completed in all respect. Payment of 10 %security deposit/deducted shall be released after completion of defect liability period on demand within 30 days. Payment to MSME Parties shall be made within a period applicable as per MSMED Act or payment terms as per NIT/WO, whichever is earlier.

b) The party has the option to receive payment through Electronic Funds Transfer (EFT)/RTGS Process. For this option, they may submit their bank particulars i.e. Customers Name, Name of the Bank, Bank Account No. (All digits in case of CBS branches), Place of branch, Branch Code(IFSCCODE-II digits) to enable NFL to release payment accordingly. All bank charges will be to their account.

c) Party shall submit bill in triplicate to the Department along with measurement sheet duly verified by area in-charge. The area in-charge will forward the bill after verification to F&A Department for payment through HOD.

d) NFL shall deduct TDS-Income Tax as per Income Tax Act, TDS/TCS–GST wherever applicable as per GST law, Commercial Tax, Cess including BOCW Cess at source from all payments due and to be made to the Party under this contract in accordance with provisions of relevant Act and Rules framed there under including any amendment and modifications thereof as applicable from time to time.

e) The party shall furnish along with each running bill a certificate that the has complied with statutory provisions relating to Minimum Wages, PF &ESI and Contract Labour (R&A) Act, 1970 etc. and shall also submit copies of Wage Sheet, PF & ESI Challan.

f) Bill should be signed by a person holding power of attorney or authorized representative of party.

g) In addition to above terms, payment of final bill will be made subject to, inter alia, following terms:

1. Payment of final bill will be made to the party after submission of certificate from CISF Gate that all the gate passes issued to the labour of the party have been returned alternatively no objection certificate may be provided from CISF.

2. The Payment of final bill will not be made until the party has handed over the peaceful vacant possession of land, if any, handed over to him free from all encumbrances including offices, stores, workshop, temporary structure, lighting, fixture poles etc.

3. Return of empty packing material, scrap and unconsumed material issued by NFL.
4. The party shall be required to give a certificate along with final bill that he has made all payments towards wages as defined under the Payment of Wages Act, 1936 and Contract Labour (R&A) Act, 1970 and has also complied with other provisions of Labour Laws in respect of manpower engaged/employed for the execution of work.
5. The party is further required to give an undertaking stating that incase any dispute arises on account of deployment of manpower/labour, party would be responsible to discharge the statutory obligations, if any, and NFL will stands indemnified against any such claim/demand made in future.
6. Following documents (as applicable) and documents to comply with statutory requirement shall be submitted along with the final bill after the successful execution of the job:
 - a. Undertaking for compliance of the labour laws in the prescribed format
 - b. No claim certificate in the format approved by NFL
 - c. No dues certificate form respective sections.
 - d. Self-attested copy of the ESI challan along with contribution history, separately for this contract.
 - e. Self-attested copy of the PF challan, Payment confirmation receipt, ECR with respect to PF deposit, separately for this contract.
 - f. Indemnity letter regarding statutory dues (PF, ESI, Minimum Wages, Labour Welfare Fund if applicable etc.) in the prescribed format
 - g. Self-attested copy of the wage sheet, attendance record, employee register and Loan/recovery in revised format of A,B,C&D.
 - h. Return of Gate passes issued by CISF / NOC from CISF

1.25.0. LIQUIDATED DAMAGES (LD):

The time and date of completion of work as stipulated in the contract shall be deemed to be essence of the contract. In the event of work is not completed according to the time schedule, the party shall have to pay Liquidated Damages to the NFL at the rates of 1 % of the total value of work for delay of every week or part thereof, subject to a ceiling of 10 % of the total value of the work plus applicable GST thereon. These Liquidated Damages shall be recovered from the RA/Final Bill of the party of this work, or from any other dues of the party against any other contract, or from any other dues of party lying with NFL.

1.26.0. JURISDICTION:

Notwithstanding any other court or courts having jurisdiction to decide the question(s) forming the subject matter of the reference if the same had been the subject matter of a suit, any and all actions and proceedings arising out of or relating to the contract (including any arbitration in terms thereof) shall lie only in the court of Competent authority civil jurisdiction in this behalf at Bathinda (where this contract has been signed on behalf of the owner) and only the said courts shall have jurisdiction to entertain and try such action(s) and / or proceeding (s) to the exclusion of all other courts.

1.27.0. CONCILIATION & ARBITRATION:

(i) FOR INDIAN PARTIES

Any dispute or difference whatsoever arising between the parties out of or relating to the construction, meaning, scope, operation or effect of this contract or the validity or breach thereof shall be resolved amicably through negotiations by the parties. A "Notice of Dispute" shall be given by the party seeking resolution of a dispute to the other party. If the dispute is not resolved within Thirty (30) days from the notice, the dispute shall be referred to arbitration as per the procedure mentioned herein below:

A written notice shall be given by the party invoking arbitration to National Fertilizers Limited through **Designated Authority (CMD / Functional Directors/ Unit Head).**

Where the claim including determination of interest, if any, being claimed upto the date of commencement of arbitration does not exceed Rs. Five crore, the reference shall be made to a sole arbitrator. The parties shall mutually agree on the name of sole arbitrator. In case of disagreement upon the name of the sole arbitrator, the appointment of Sole Arbitrator shall be done in accordance with the provisions of Arbitration & Conciliation Act, 1996.

Where the claim including determination of interest, if any, being claimed upto the date of commencement of arbitration exceed Rs. Five crore, the reference shall be made to arbitral tribunal consisting of three arbitrators. Each party shall nominate one arbitrator each within 30 days from the date of receipt of notice of invocation of arbitration and two nominated arbitrators shall appoint the presiding arbitrator within 30 days thereafter. If a party to the dispute refuses or neglects to nominate an arbitrator on its behalf within the period specified, or the two arbitrators' fails to nominate Presiding arbitrator, appointment of Arbitrator(s) shall be done in accordance with the provisions of Arbitration & Conciliation Act, 1996.

The Arbitration proceedings shall be governed by the Arbitration & Conciliation Act, 1996 and any further statutory modification or re-enactment thereof and the rules made thereunder.

It is agreed by and between the parties that in case a reference is made to the Arbitrator for the purpose of resolving the disputes/ differences arising out of the contract by and between the parties hereto, the Arbitrator shall not award interest on the awarded amount more than the rate of SBI PLR / Base Rate applicable to NFL on date of award of contract.

The Seat and venue of Arbitration shall be at Bathinda.

The cost of the proceedings shall be equally borne by the parties, unless otherwise directed by the arbitral tribunal. The decision of the arbitral tribunal shall be final and binding on all parties.

(ii) Arbitration for Foreign Vendors /Parties:

Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by Arbitration administered by the Singapore International Arbitration Centre (“SIAC”) in accordance with the Arbitration rules of Singapore International Arbitration Centre (“SIAC Rules”) for the time being in force, which rules are deemed to be incorporated by reference in this clause.

The Seat and venue of Arbitration shall be at New Delhi, India.

The language of the Arbitration shall be English.

This contract/LOI/NIT shall be governed by and construed in accordance with the Laws of India.

(iii) Arbitration for CPSEs and Government Department:

In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract(s) between Central Public Sector Enterprises (CPSEs) / Port Trusts inter se and also between CPSEs and Government Departments / Organizations (other than those related to taxation), such disputes or differences shall be taken by either party for resolution through AMRCD as mentioned in DPE OM No. 4(1)/2013-DPE(GM)/FTS-1835 dated 22-05-2018.

1.28.0. PARTY TO REMOVE UNSUITABLE EMPLOYEES:

The party shall on instruction of the Engineer-in-charge immediately remove from the work any person employed thereon who may misbehave or cause any nuisance or otherwise, in the opinion of the Engineer-in-charge is not a fit person to be retained on the work and such person shall not be again employed or allowed on the works without the prior written permission of the Engineer-in-charge.

1.29.0. SAFETY REGULATION:

The party shall observe and abide by all fire and Safety regulations of the NFL. Before starting maintenance work, the Party shall consult NFL's Safety Officer or the Engineer-in-charge. If the Safety Engineer is not available, he will do familiarize him with such regulations, copies of which will be furnished to him by NFL, when requested. He shall be responsible for and must make good to the satisfaction of the NFL any loss or damage due to fire to any portion of the work to be done under this agreement or to any of the NFL's existing property. All the accidents to party's staff will be reported to the Safety Officer promptly.

This will however not relieve the party of any statutory obligation. The party shall not undertake any hot job without safety work permit. He has to maintain First Aid Box in his office. Also necessary safety equipment like Helmets, Hand Gloves, Face Shield, Safety Belt etc are to be provided to his workmen by the party. However special Safety equipment required as per the job requirement will be provided by NFL free of cost.

For any default / accident / loss due to negligence of Party/ workers, the liability of Party shall be “Absolute liability”.

1.30.0. PARTY TO EXECUTE AGREEMENT:

The party's responsibility under this contract will commence from date of issue of the Letter of Intent. The Tender Documents, other documents exchanged between the Tenderer and NFL, the letter of acceptance and work order shall constitute to the contract. The successful Tenderer shall be required to execute an agreement on a non-judicial stamp paper of prescribed value with NFL within 15 days (Fifteen days) of receipt by him of the Letter of Intent. The agreement to be executed will be in Agreement Form specified by NFL. The cost of the Stamp Papers will be borne by the party. Until a

formal agreement is prepared and executed, acceptance of this tender shall constitute a binding contract between the parties.

1.31.0. BIDDER TO ACQUAINT HIMSELF FULLY

The Bidder may visit the site and shall acquaint himself fully and thoroughly with the conditions and limitations including scope, requirements and official/statutory regulations, under which, conforming to which and subject to which, services/work are to be performed by him. Failure to comply with the aforesaid requirements will not relieve the BIDDER of his obligations in the event of his tender being accepted nor will any claim whatsoever be entertained on the plea of ignorance or overlooking. The Bidder shall give an undertaking that the terms and conditions of NIT and other aforesaid conditions are acceptable to him without reservations and no deviations to NIT have been taken while making the offer. Unless otherwise specifically stated in his bid, it will be assumed that all terms and conditions of NIT are accepted by the bidder without any reservations whatsoever.

1.32.0. PAYMENT FOR PREPARATION OF BID DOCUMENT

The Bidder shall not be entitled to claim any cost, charges, expenses, losses incidental to the preparation and submission of this tender in any case.

1.33.1. TERMINATION OF CONTRACT

Notwithstanding anything elsewhere herein provided and in addition to any other right or remedy of NFL under the Contract or otherwise including right of NFL for compensation for delay the Engineer-in-charge/officer-in-charge may, without prejudice to his right against Party in respect of any delay, bad workmanship or otherwise or to any claims for damage in respect of any breaches of the Contract and without prejudice to any rights or remedies under any of the provisions of this Contract or otherwise and whether the date for completion has or has not elapsed by intimation in writing, absolutely, determine the Contract:

Default or failure by Party of any of his obligations under the Contract including but not limited to the following, the Contract is liable to be terminated after written notice of the party:

I. Becomes bankrupt or insolvent or goes into liquidation or is ordered to be wound up or has a receiver appointed on its assets or execution or distress is levied upon all or substantially all of its assets.

II. Abandons the work

III. Persistently disregards the instructions of the Company in contravention of any provision of the CONTRACT.

IV. Persistently fails to adhere to the agreed program of work.

V. Sublets the work in whole or in part thereof without Company's consent in writing.

VI. Performance is not satisfactory or work is abnormally delayed.

VII. Defaults in the performance of any material undertaking under this CONTRACT and fails to correct such default to the reasonable satisfaction of the Company within fifteen days after written notice of such default is provided to the Party.

VIII. Conceals any material information or submit any false document or information furnished by the party regarding past experience and or contents of any document etc. are found false.

1.33.2. CONSEQUENCES OF TERMINATION

If the contract is terminated by NFL for the reasons detailed under clause no.1.41.1 of General Terms and Conditions due to default of the party:

- i) NFL reserves the right to get the work completed at the risk and cost of the Party and to recover from the Party any amount by which the cost of completing the work by any other agency exceeds the value of the contract plus 25% towards administrative cost, without prejudice to any other remedies/rights/claims etc. that may be available with NFL.
- ii) Security Deposit/Performance Bank Guarantee Bond submitted by the Party shall stand forfeited.
- iii) The Party shall have no right to claim any compensation for any loss sustained by him by reason of his having entered into any commitment or made any advance on account of or with a view to the execution of the works, or on account of expected profits.
- iv) All the dues payable to the Party for the work executed by him before and up to termination shall only be released after making adjustments for the expenses, charges, damages and expected losses etc. incurred by NFL as a consequence of the termination of the contract.
- v) Apart from above NFL reserves the right to delist/ blacklist the party from the approved list of pre-qualified parties or debar from participating in tendering process of NFL in all units / offices as per NFL's rules& regulations.

1.33.3. FORECLOSURE

If at any point of time, after the acceptance of the tender, the Company decides to abandon or reduce the scope of the contract work or to terminate the contract due to force majeure, regulations or ordinance of any government or for any reasons whatsoever, the Officer in Charge shall give notice in writing, to that effect to the Party and the Party shall have no claims to any payment, on account of compensation or on account of profit advantage, that he would have derived by way of execution of work, but could not do so, because of foreclosure.

Such foreclosure will be by 15 (fifteen) days' notice in writing and no claim /compensation shall be payable by the OWNER as a result of such termination, excepting the fees and costs for the meaningful services rendered by the PARTY and acceptable to OWNER up to the date of termination.

1.34.0. RIGHTS OF OWNER

A unilateral stoppage of work by the Party shall be considered a breach of the CONTRACT and the OWNER reserves its right to take necessary and suitable action as it may deem fit, to adequately protect his/its interest; at the risk and cost of the party. Any aforesaid action shall be without prejudice to any other action, rights and remedies etc. that may also be available. In the event the Party fails to fulfil his obligations under the CONTRACT, the OWNER shall have the right to get the work done by any other agency/own resources at the risk and cost of the Party.

1.35.0 TIME EXTENSION

If the Party requires any extension of time for completing the Work under the CONTRACT, he must apply to the OWNER within seven days from the date of the occurrence of the event on account of

which he desires such extensions and the OWNER may, if he thinks such request reasonable, grant such extension of time as he may think necessary. The extension of completion date shall also be subject to the right of NFL to claim a reduction in prices on account of reduction in statutory duties / taxes etc. which may take place during the extended period of completion. However, increase in prices during extended completion period on account of increase in statutory duties/taxes etc. admissible under this work order/contract may be considered only if extension is due to delay on the part of NFL. Any extension of time given under the provisions of this clause shall be without prejudice to other conditions of Contract and will not absolve the Party from the obligations of other clauses under the Contract. The Party shall not be entitled to increase in prices or for any compensation whatsoever on account of the extension of time allowed. Where a Bank Guarantee has been furnished by the Party in pursuance of clause (by way of Security Deposit), the Party shall immediately arrange to extend the validity of the Bank Guarantee at his cost to adequately cover the extended period of time for completion of work granted under this clause. In addition, the party shall ensure that the Labour license, Insurance policy are renewed from time to time at his cost during the extended period of contract till the completion of the project.

1.36.0 CONTINUED PERFORMANCE

The Party shall not stop work in case of any dispute pending before arbitrator/court/Tribunal in relation to the contract or otherwise unless further progress of works has been rendered impossible due to non-fulfillment of any reciprocal promise. Unilateral stoppage of work by the Party shall be considered a breach of CONTRACT and the OWNER shall be within its rights to take suitable and necessary action as it may deem fit to adequately protect its own interests.

1.37.0 INTELLECTUAL PROPERTY RIGHT

The Party shall fully indemnify NFL and all agents, servants and employees of the Company against any action, claim or proceeding relating to infringement or the use of any patent, trademark or design in respect of any article or part thereof included in the Contract. In the event of any claims being made or action being brought against the Company or any agent, or servant, or employee of the Company in respect of any of the matters aforesaid, the Party shall be notified thereof for taking necessary action at his cost.

1.38.0 PARTY'S OBLIGATIONS W.R.T. PERSONNEL DEPLOYED AND LABOR RELATED COMPLIANCE:

- a) The party shall abide by following acts and rules framed there under or any modifications thereof or any other law relating thereto and rules made there under from time to time, in addition to provisions of the GENERAL Terms & Conditions of NFL Bathinda Unit.
 - i) Minimum Wages Act 1948.
 - ii) Employees Provident Fund & Misc, Provisions act 1952.
 - iii) Factories Act 1948.
 - iv) Employees Compensation Act 1923.
 - v) Industrial Disputes Act, 1947.
 - vi) Payment of Wages Act, 1936.
 - vii) Employees State Insurance Act, 1948.
 - viii) Payment of Bonus Act, 1965.
 - ix) Punjab Labour Welfare Act, 1965
 - x) Equal Remuneration Act, 1976.
 - xi) Child Labour (Prohibition & Regulation.) Act, 1986
 - xii) Any other Act & Rules framed there under by the State/Central Govt. from time to time.

- xiii) The party shall be required to possess a valid license for engaging labour from state labour department.
- xiv) Employee's Pension Scheme 1995
- xv) The workman's Compensation Act, 1923 (in the absence of coverage of employees under Employees State Insurance Act 1948)
- xvi) Punjab Labour Welfare Fund Act, 1965
- xvii) Employers Liability Act 1938
- xviii) Employment of Children Act 1938
- xix) Maternity Benefit Act 1961
- xx) Payment of Gratuity Act 1971
- xxi) Building & Other Construction Workers (Regulation of Employment and Conditions of Service) Act 1996 (BOCW) along with BOCW Welfare Cess Act 1996,

(THE ABOVE ACTS ARE ONLY ILLUSTRATIVE AND NOT EXHAUSTIVE.)

The party shall abide by all the Laws/Acts/Rules/ Regulations and is required to discharge all other statutory obligations and maintain registers and records under the various Labour Laws/ Rules enacted and as amended by the Appropriate Government from time to time

- b) The party shall comply with all applicable Central, State statutes/labour laws/codes/schemes including all other applicable statutory rules and regulations in force relating to the contract and keep NFL indemnified in respect thereof. The party shall, to the extent, he is liable, comply with & give all intimation/ notices required under any Government Authority, instrument, rule or order made under any Act of Parliament, State laws or any regulations or bye-laws of any local authority relating to the contract. The Party shall, to the extent that he is liable to pay, indemnify NFL against any liability in respect of any fee/ charges/ fines/ penalty payable under any Act of Parliament, State Laws or any Govt. instrument, rule or order or enactment, any regulations, bye-laws of any local authority in respect of the contract awarded. In case of any violations, omissions, commissions, the consequence/s, if any, including the cost thereto shall be exclusively borne by the PARTY and NFL shall have no liability whatsoever on this account.
- c) In case the PARTY selected for award of contract does not have a PF code, He shall be required to obtain the same. The party shall timely apply and obtain requisite labour licences & other requisite registrations/ licenses/ clearances from the concerned Authorities and submit a certified stamped copy of the same. Party shall ensure its uninterrupted continuity throughout the period of contract/ applicability.
- d) The Party shall depute only physically and medically fit 'adult' persons against the contract i.e. persons below the age of 18 years and *above 60 years of age shall* not be allowed to be engaged for execution of work. The party may employ such persons as He may think fit and the persons so employed shall be employees of party for all purposes and shall not be deemed to be in the employment of NFL for any purpose whatsoever. The Party shall ensure medical examination of workers engaged by them.
- e) The Party shall pay wages directly to the persons employed by him under the Contract, within the stipulated period i.e. by 7th of the following month, by direct credit in his/her bank account through NEFT/RTGS or by way of cheque. The wage rates should not be less than the stipulated minimum wage rates notified by Appropriate Government from time to time with respect to the work performed/ rendered, without any discrimination on grounds of caste/ creed/ religion/ gender. PARTY shall also enroll/cover all eligible/ entitled personnel under EPF, EPS, EDLI, ESI, Labour Welfare Fund, & all the other applicable statutory Acts/ Codes/ schemes and ensure deduction & deposition of the requisite contributions – employee's as well as employer's - for the same with the

concerned Authorities/ departments within the due date (i.e. 15th of the following month in case of deposition under EPF & Misc. Provisions Act and by 15th of the following month in case of depositions under ESI Act).

- f) The Party is also required to discharge all other statutory obligations including timely submission of reports, returns to concerned Authorities and maintain updated registers and records in prescribed proforma under all the various applicable statutes/ Labour Laws/Code(s) including the rules made thereunder enacted and/or amended by the Appropriate Government from time to time.
- g) The party shall on monthly basis submit a certified stamped copy of wage sheet besides documentary evidence in support of wage payment, deduction & deposition of EPF, ESI, Labour Welfare. The party shall also submit a certified stamped copy w.r.t. any other payment made/ benefit extended by him towards fulfillment of his statutory obligations under applicable statutes and/or his contractual obligations towards NFL. Submission of these and other requisite documents/ records and proper maintenance and production of the same as when requisitioned by Authorities/ NFL has to be ensured for smooth clearance/ settlement of bills/payments.
- h) PARTY shall follow prescribed safety regulations & procedure and shall adhere with safe work practices.

1.39.0 SPECIFICATIONS AND DRAWINGS:

- (1) Adherence to Specifications and Drawings: The whole of the works shall be executed in conformity with the specifications and drawings of the contract. If Party performs any works in a manner contrary to the specifications or drawings or any of them and without such reference to the Engineer, he shall bear all the costs arising or ensuing therefrom and shall be responsible for any loss to NFL.
- (2) Drawings and Specifications of the Works: The Party shall keep one copy of Drawings and Specifications at the site, in good order, and such contract documents as may be necessary, available to the Engineer or the Engineer's Representative.
- (3) Ownership of Drawings and Specifications: All Drawings and Specifications and copies thereof furnished by the NFL to the Party are deemed to be the property of NFL. They shall not be used on other works and with the exception of the signed contract set, shall be returned by the Party to the NFL on completion of the work or termination of the Contract.

1.40.0 SIGNING OF "NO CLAIM" CERTIFICATE:

The Party shall not be entitled to make any claim whatsoever against NFL under or by virtue of or arising out of this contract, nor shall NFL entertain or consider any such claim, if made by the Party, after he shall have signed a "No Claim" Certificate in favour of the NFL in such form as shall be required by NFL after the works are finally measured up. The Party shall be debarred from disputing the correctness of the items covered by "No Claim" Certificate or demanding a clearance to arbitration in respect thereof.

- 1.41.0** No CONTRACT or understanding in any way modifying the conditions of CONTRACT shall be binding upon either party hereto unless made in writing and approved by both parties.

1.42.0 INDEMNIFICATION:

The party shall have to furnish Indemnity Bond for value of Rs.....towards the material being sent for repair (This Clause shall be applicable for repair of materials).

1.43.0 The contract shall be governed by and construed in accordance with the Laws of India.

1.44.0 INTEGRITY PACT:

In case of contract valuing Rs 1 crore and above, the Bidder(s) / Party(s) is required to enter into an “Integrity Pact” with the Principal i.e. NFL. The Integrity Pact has to be signed by the Proprietor / Owner/ Partner/ Director or by their duly Authorised Signatory. In case of failure to return the Integrity Pact along with the offer/ bid, duly signed by the authority as mentioned above, will disqualify the offer/ bid.

1.45.0 Technical Terms and Condition, Special Terms and Condition are Succeeding to GTC. In case of any discrepancy or inconsistency between Special terms and condition and general terms and conditions, the following order of preference shall be followed:

1. Scope of work /Technical terms and Condition
2. Special Terms and Condition
3. General Terms and Condition (GTC/GTCC)

Annexure-XI

Performa for proprietorship Affidavit on the stamp paper of appropriate value and notary attested

I, _____ S/o Sh. _____ resident
of _____ do hereby solemnly affirm and declare as under:

- 1) That on _____ (date of start of business) I the deponent has started business under the name and style of Proprietorship as a sole proprietor and at present M/s _____ is a sole proprietorship firm.
- 2) That I am the sole proprietor of the firm named as _____ situated at _____ (full address of firm with pin code).
- 3) That my above declarations are true and correct in case, my above declaration found incorrect, in that event, my bid / tender/contract may be rejected and NFL shall be fully competent to take the necessary action as deemed fit.

DEPONENT

VERIFICATION

Verified that the above contents of my affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therein.

DEPONENT

Place _____

Date: _____

Annexure-XII

PROCUREMENT FROM A BIDDER WHICH SHARES A LAND BORDER WITH INDIA

1. Order (Public Procurement No. 1) dated 23.07.2020, Order (Public Procurement No. 2) dated 23.07.2020 and Order (Public Procurement No. 3) dated 24.07.2020, Department of Expenditure, Ministry of Finance, Govt. of India refers. The same are available at website <https://doe.gov.in/procurement-policy-divisions>.
2. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. For details of competent authority refer to Annexure I of Order (Public Procurement No.1) dated 23.07.2020. Further the above will not apply to bidders from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects. Updated lists of countries to which lines of credit have been extended or in which development projects are undertaken are given in the website of the Ministry of External Affairs, Govt. of India.
3. "Bidder" (including the term 'tenderer', 'consultant' 'vendor' or 'service provider' in certain contexts) for purpose of this provision means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency, branch or office controlled by such person, participating in a procurement process.
4. "Bidder from a country which shares a land border with India" for the purpose of this:
 - a) An entity incorporated, established or registered in such a country; or
 - b) A subsidiary of an entity incorporated, established or registered in such a country; or
 - c) An entity substantially controlled through entities incorporated, established or registered in such a country; or
 - d) An entity whose beneficial owner is situated in such a country; or
 - e) An Indian (or other) agent of such an entity; or
 - f) A natural person who is a citizen of such a country; or
 - g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.
5. "Beneficial owner" for the purpose of above (4) will be as under:
 - i) In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person(s), has a controlling ownership interest or who exercises control through other means.

Explanation—

 - a. "Controlling ownership interest" means ownership of, or entitlement to, more than twenty-five per cent of shares or capital or profits of the company;
 - b. "Control" shall include the right to appoint the majority of the directors or to control the management or policy decisions, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;

- ii) In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;
 - iii) In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;
 - iv) Where no natural person is identified under (i) or (ii) or (iii) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;
 - v) In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.
6. "Agent" for the purpose of this Order is a person employed to do any act for another, or to represent another in dealings with third persons.
7. SUBMISSION OF CERTIFICATE IN BIDS:
- Bidder shall submit a certificate in this regard as **Form-I**. If such certificate given by a bidder whose bid is accepted is found to be false, this would be a ground for immediate rejection of the bid/termination and further action as per— Procedure for Action in case of Corrupt/Fraudulent/ Collusive / Coercive Practices|| of tender document.
8. The registration, wherever applicable, should be valid at the time of submission of bids and at the time of acceptance of bids. In respect of supply otherwise than by tender, registration should be valid at the time of placement of order. If the bidder was validly registered at the time of acceptance / placement of order, registration shall not be a relevant consideration during contract execution.
9. PROVISION FOR _____ CONTRACTS, INCLUDING TURNKEY CONTRACTS:
- The successful bidder shall not be allowed to sub-contract works to any party from a country which shares a land border with India unless such party is registered with the Competent Authority. The definition of "contractor from a country which shares a land border with India" shall be as in Para 4 hereinabove. A Certificate to this regard is to be submitted by bidder is placed at Form-II

Form-I

UNDERTAKING ON LETTERHEAD

To,
M/s NATIONAL FERTILIZERS LIMITED

SUB: TENDER NO:

Dear Sir,

We have read the clause regarding Provisions for Procurement from a Bidder which shares a land border with India, we certify that, bidder M/s_____ (Name of Bidder) is :

(i) Not from such a country []

(ii) If from such a country, has been registered [] with the Competent Authority.

(Evidence of valid registration by the Competent Authority shall be attached)

(Bidder is to tick appropriate option (☐ or X) above).

We hereby certify that bidder M/s_____ (Name of Bidder) fulfils all requirements in this regard and is eligible to be considered against the tender.

Place:

[Signature of Authorized Signatory of Bidder]

Date:

Name:

Designation:

Seal:

Form-II

CERTIFICATE FOR TENDERS FOR WORKS INVOLVING POSSIBILITY OF SUBCONTRACTING

To,

M/s NATIONAL FERTILIZERS LIMITED

SUB: TENDER NO: NFB/_____

Dear Sir,

We have read the clause regarding Provisions for Procurement from a Bidder of a country which shares a land border with India and on sub-contracting to parties from such countries; we certify that, bidder M/s_____ (Name of Bidder) is:

(i) not from such a country []

(ii) if from such a country, has been registered [] with the Competent Authority.

(Evidence of valid registration by the Competent Authority shall be attached)

(Bidder is to tick appropriate option (☐ or X) above).

We further certify that bidder M/s_____ - (Name of Bidder) will not sub-contract any work to a party from such countries unless such party is registered with the Competent Authority.

We hereby certify that bidder M/s_____ (Name of Bidder) fulfils all requirements in this regard and is eligible to be considered.

Place:

[Signature of Authorized Signatory of Bidder]

Date:

Name:

Designation:

Seal:

Annexure-XIII

CONTRACT AGREEMENT

THIS CONTRACT made -----on this----- day of-----2025 at----- (Place) BETWEEN NATIONAL FERTILIZERS LIMITED (NFL), a Public Sector Undertaking (PSU) under the Administrative Control of Department of Fertilizers, Ministry of Chemicals & Fertilizers having its Registered Office at SCOPE Complex, Core-III, 7, Institutional Area, Lodhi Road, New Delhi-110003 and its Unit/ Office at Bathinda (hereinafter referred to as the "Owner", which expression shall be deemed to include its successors and assigns) through its authorized representative of the one Part.

AND

M/s _____ (carrying on business in sole-proprietor/partnership/ company etc.,) having its office/ registered office at _____ (hereinafter referred to as "Party", which expression shall be deemed to include his/its representatives/successors and permitted assigns) through its authorized representative of the other Part.

WHEREAS the Owner is desirous of executing certain works as mentioned and described in the Work Order/ Letter of Intent No. _____ dated _____ for total Contract value of Rs. _____ (Rs. _____ Only) and whereas the Party has agreed to execute the work as specified in the Tender Documents and Work Order/ Letter of Intent referred to above and also in the contract documents.

NOW THEREFORE THIS CONTRACT WITNESSTH AS FOLLOWS:

ARTICLE – I

1 CONTRACT DOCUMENTS

1.1. The following documents shall constitute the contract documents namely: -

- a. This Contract
- b. Tender Document/NIT
- c. Work Order No. _____ dated _____
- d. Letter of Intent / Notification of Award No. _____ dated _____
- e. Party Quotation/bid dated _____.
- f. Owner's Tender Document/ NIT No. _____ dated _____
- g. Amendment/ Addendum/ Corrigendum dated _____ (If any) to Tender Document/NIT.
- h. Owner's Letter/email dated _____ (If any).
- i. Party's Letter/email dated _____ (If any).

1.2. A copy each of the above documents (a) to (h) are annexed hereto and the said copies have been collectively marked Annexure-I.

ARTICLE –2

2) SCOPE OF WORK

1.1. In consideration of the payment to be made to the Party as hereinafter provided, he shall with due care, promptness, accuracy and workmanship execute the work in accordance with approved plans, Notice Inviting Tender (NIT), Special Conditions of the Contract, General Terms & Conditions of the Contract, Technical Specifications and the Work Order/ Letter of Intent.

ARTICLE-3

3) TERM

3.1. The Contract work shall be duly executed and completed in all aspect and handed over to National Fertilizers Ltd. within a period of _____ months/year w.e.f. _____ to _____. The time mentioned herein shall be essence of the contract.

ARTICLE-4

4) TERMINATION OF CONTRACT

4.1. Notwithstanding anything elsewhere herein provided and in addition to any other right or remedy of NFL under the Contract or otherwise including right of NFL for compensation for delay the Engineer-in-charge/officer-in-charge may, without prejudice to his right against Consultant in respect of any delay, bad workmanship or otherwise or to any claims for damage in respect of any breaches of the Contract and without prejudice to any rights or remedies under any of the provisions of this Contract or otherwise and whether the date for completion has or has not elapsed by intimation in writing, absolutely, determine the Contract:

Default or failure by Contract of any of his obligations under the Contract including but not limited to the following, the Contract is liable to be terminated if the Consultant becomes bankrupt or insolvent or goes into liquidation or is ordered to be wound up or has a receiver appointed on its assets or execution or distress is levied upon all or substantially all of its assets.

-Abandons the work

Or

-Persistently disregards the instructions of the Owner in contravention of any provision of the Contract

Or

-Persistently fails to adhere to the agreed program of work

Or

-Sublets the work in whole or in part thereof without Owner consent in writing

Or

-Performance is not satisfactory or work is abnormally delayed

Or

-Defaults in the performance of any material undertaking under this Contract and fails to correct such default to the reasonable satisfaction of the Owner within fifteen days after written notice of such default is provided to the Party

Or

- Conceals or submit any false document or information furnished by the party regarding past experience and or contents of any document etc. are found false.

4.2. Owner may terminate the Contract due to any reason including reasons due to force majeure, regulations or ordinance of any Government or any other reasons beyond the reasonable control of the Owner. Such termination will be by 15 (fifteen) days' notice in writing and no claim/compensation shall be payable by the Owner as a result of such termination, excepting the fees and costs for the meaningful services rendered by the Party and acceptable to Owner up to the date of termination.

4.3. CONSEQUENCES OF TERMINATION

If the contract is terminated by NFL for the reasons detailed under clause no. 4.1 of above or for any other reason whatsoever:

- i. NFL reserves the right to get the work completed at the risk and cost of the Party and to recover from the Party any amount by which the cost of completing the work by any other agency exceeds the value of the contract, without prejudice to any other remedies/rights/claims etc. that may be available with NFL.
- ii. Security Deposit/Performance Bank Guarantee Bond submitted by the Party shall stand forfeited.
- iii. The Party shall have no right to claim any compensation for any loss sustained by him by reason of his having entered into any commitment or made any advance on account of or with a view to the execution of the works, or on account of expected profits.
- iv. All the dues payable to the Party for the work executed by him before and up to termination shall only be released after making adjustments for the expenses, charges, damages and expected losses etc. incurred by NFL as a consequence of the termination of the contract.
- v. Apart from above NFL reserves the right to delist/ blacklist the party from the approved list of pre-qualified parties or debar from participating in tendering process of NFL in all units / offices as per NFL's rules & regulations.

ARTICLE-5

5.1. FORCE MAJEURE CLAUSE (FMC)

The terms and conditions agreed upon under the contract shall be subject to Force Majeure. Neither the party nor NFL shall be considered in default in the performance of their obligation contained therein, if such performance is prevented or delayed or restricted or interfered with by reason of War, Hostilities, Acts of Public Enemy, Civil Commotion, Strike, Lockouts, Epidemics/Pandemics, Accidents, Fires, Explosions, Flood, Earthquake, regulation or ordinance or requirement of any Government or any sub-division thereof or authority or representative of any such Govt., and/or due to technical snag/reasons or any other Act whatsoever, whether similar or dissimilar to those enumerated beyond the reasonable control of the parties hereto or because of any act of GOD. The party so affected, upon giving prompt notice to other party of such conditions and cause thereof from within 15 (Fifteen) days of occurrence of such event, shall be excused from such performance to the extent of such prevention, delay, restriction or interference for the period it persists provided that the party so affected shall use its best efforts to avoid or remove such causes of non- performance if possible and shall continue performance hereunder with the utmost dispatch whenever such causes are removed.

If the performance in whole or in part of any obligation under this contract is prevented or delayed by reason of any such event for a period exceeding 90 (Ninety) days, either party may at its option terminate the contract by giving notice to the other party.

For delays arising out of Force Majeure neither NFL nor the Party shall be liable to pay extra costs or to make good any losses incurred consequent to the happening of any of the event, provided it is mutually established that Force Majeure condition did actually exist.

ARTICLE-6

6.1. INDEMNITY BY PARTY

The Party shall indemnify and save harmless Owner from and against all actions, suit, proceedings, losses, costs, damages, charges, claims and demands of every nature and description brought or recovered against the Owner by reason of any act or omission of the Party, his agents or employees, in the execution of the works or in his guarding of the same. All sums payable by way of compensation under any of these conditions shall be

considered as reasonable compensation to be applied to the actual loss or damage sustained, and whether or not directly or indirectly any damage shall have been sustained.

ARTICLE-7

7.1. ENTIRE CONTRACT

The contract documents mentioned in Article-I hereof embody the entire contract between the parties hereto and the parties declare that in entering this contract, they do not rely upon any previous representation whether express or implied and whether written or oral or any inducement, understanding or agreement of any kind not included within the contract documents and all prior negotiations, representations contract and/or agreements and understanding are hereby cancelled.

ARTICLE-8

8. NOTICE

8.1. Subject to any provisions in the contract documents to the contrary, any notice, order of communication sought to be served by the Party on the Owner with reference to the contract shall be deemed to have been sufficiently served upon the Owner (notwithstanding any enabling provisions under any law to the contrary) only, if delivered by Hand or by Registered Post/ Speed Post or email to the Officer/Engineer-In-Charge as defined in the General Terms and Conditions of the contract.

8.2. Without prejudice to another mode of service provided for in the contract documents or otherwise available to the Owner, any notice, order or other communication sought to be served by the Owner on the Party with reference to the contract shall be deemed to have been sufficiently served upon the Contractor if delivered by Hand or through Registered Post/Speed Post or email to the Party at his specified address at_____.

ARTICLE-9

1.0 WAIVER

9.1. No failure or delay by the Owner in enforcing any right or remedy of the Owner in terms of contract or any obligation or liability of the Party in terms thereof shall be deemed to be a waiver of such right, remedy, obligation or liability, as the case may be, by the Owner or notwithstanding such failure or delay, the Owner shall be entitled at any time to enforce such right remedy, obligation or liabilities as the case may be.

ARTICLE-10

1.0 NON-ASSIGNABILITY

10.1. The contract and benefits and obligations thereof shall be strictly personal to the Party and shall not on any account be assignable or transferable by the Party, except without written prior permission of Owner.

ARTICLE-11

11.1. DISPUTE RESOLUTION

For Indian Parties

“Any dispute or difference whatsoever arising between the parties out of or relating to the construction, meaning, scope, operation or effect of this contract or the validity or the breach thereof shall be resolved amicably through

negotiations by the Parties. A “Notice of Dispute” shall be given by the party seeking resolution of a dispute to other party. If the dispute is not resolved within Thirty (30) days from the notice, the dispute shall be referred to arbitration as per the procedure mentioned herein below:

A written notice shall be given by the party invoking arbitration to National Fertilizers Limited through Designated Authority (as mentioned in General Terms and Conditions).

Where the claim including determination of interest, if any, being claimed upto the date of commencement of arbitration does not exceed Rs. Five crore, the reference shall be made to a sole arbitrator. The parties shall mutually agree on the name of sole arbitrator. In case of disagreement upon the name of the sole arbitrator, the appointment of Sole Arbitrator shall be done in accordance with the provisions of Arbitration & Conciliation Act, 1996.

Where the claim including determination of interest, if any, being claimed, upto the date of commencement of arbitration exceeds Rs. Five crore, the reference shall be made to arbitral tribunal consisting of three arbitrators. Each party shall nominate one arbitrator each within 30 days from the date of receipt of notice of invocation of arbitration and two nominated arbitrators shall appoint the presiding arbitrator within 30 days thereafter. If a Party to the dispute refuses or neglects to nominate an arbitrator on its behalf within the period specified, or the two arbitrators fails to nominate Presiding arbitrator, appointment of Arbitrator(s) shall be done in accordance with the provisions of Arbitration & Conciliation Act, 1996.

The Arbitration proceeding shall be governed by the Arbitration & Conciliation Act, 1996 and any further statutory modification or re-enactment thereof and the rules made there under.

It is agreed by and between the parties that in case a reference is made to the Arbitrator for the purpose of resolving the disputes/differences arising out of the contract by and between the parties hereto, the Arbitrator shall not award interest on the awarded amount more than the rate SBI PLR/Base Rate applicable to NFL on date of award of contract.

The seat and venue of arbitration shall be at Bathinda.

The cost of the proceedings shall be equally borne by the parties, unless otherwise directed by the arbitral tribunal. The decision of the arbitral tribunal shall be final and binding on all parties.”

11.2. For Foreign Parties

“Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre (“SIAC”) in accordance with the Arbitration Rules of the Singapore International Arbitration Centre (“SIAC Rules”) for the time being in force, which rules are deemed to be incorporated by reference in this clause.

The seat and venue of the arbitration shall be at New Delhi, India.

The language of the arbitration shall be English.

This Contract/LOI/NIT shall be governed by and construed in accordance with the Laws of India.”

11.3. For CPSEs and Government Department

In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract(s) between Central Public Sector Enterprises (CPSEs)/ Port Trusts inter se and also between

Name of the Work: Appointment of Physical Verifier for Stock Verification/Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for the F.Y. 2025-26.

CPSEs and Government Departments/Organizations (Other than those related to taxation), such dispute or difference shall be taken up by either party for resolution through AMRCD as mentioned in DPE OM No. 4(1)/2013-DPE(GM)/FTS-1835 dated 22-05-2018.

ARTICLE-12

1) JURISDICTION

Notwithstanding any other Court or Courts having Jurisdiction to decide the question(s) forming the subject matter of the reference, if the same had been the subject matter of a suit, any and all actions and proceedings arising out of or relative to the contract (including any arbitration in terms thereof) shall lie only in the court of Competent Civil Jurisdiction in this behalf at _____ (where this contract has been signed on behalf of the Owner) and only the said Court(s) shall have jurisdiction to entertain and try such action(s) and/or proceeding(s) to the exclusion of all other Courts.

IN WITNESS WHEREOF the parties hereto have duly executed this Contract induplicate at the place, day and year first above written.

SIGNED & DELIVERED

For and on behalf of
National Fertilizers Ltd,
(Owner)
(With Rubber Stamp)

Date:

Place:

In the Presence of:

Witness

1. _____ 1. _____

Signature _____

Name of Signatory _____

Address _____

2.

Signature _____

Name of Signatory _____

Address _____

SIGNED & DELIVERED

For and on behalf of
party
(With Rubber Stamp)

Date:

Place:

In the Presence of:

Witness

Signature _____

Name of Signatory _____

Address _____

2.

Signature _____

Name of Signatory _____

Address _____

ANNEXURE-XIV

SCHEDULE OF RATES

Sub: NIT Tender no. NFB/PV/2025-26 dated ___/___/2025 for Rate Contract for Appointment of Physical Verifier for Stock Verification/Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for F.Y. 2025-26 at NFL Bathinda.

Dear Sir,

With reference to above mentioned NIT tender, we hereby submit our Price-Bid as under:

S. No.	Particulars	Rate	Total Value (Rs.)	
		in Rs. (Incl. of GST)	in figures (Incl. of GST)	in words (Incl. of GST)
1	Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for F.Y. 2025-26 at NFL Bathinda		xxx	xxx
II	The rates to be quoted by the party should be inclusive of GST.			
III	Percentage of GST considered above is ____% (to be filled by bidder).			
I/ We hereby confirm that I/ we have read and understood the NIT along with the Annexures and have acquainted ourselves fully with the site conditions, scope of the contract, etc.				
I/ We agree with all the terms & conditions stated therein and confirm that the rates quoted shall remain firm during the validity of the contract.				

Place:

Date:

Authorised Signature with date

Name

Proprietor/Partner

Name of Firm/Company

Address

Tel/ Mobile No.

Email id:

नेशनल फर्टिलाइजर्स लिमिटेड, बठिंडा-151003

F&A विभाग

Ref. No. NFB/PV/2025-26/

Dated: **01.03.2025**

Name of the Work: Appointment of Physical Verifier for Stock Verification/Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for the F.Y. 2025-26.

ANNEXURE-XV

CISF GATE PASS CLEARANCE

Certified that M/s. _____ have deposited gate passes issued against work order No. _____ dated _____ for _____ . All gate passes have been deposited by the party. Nothing is outstanding against this party as far as this work order is concerned.

Seal & Signature of the Party

Authorized signatory of CISF

Special terms and conditions, Technical Terms:

1. Terms of Payment - Fifty percent (50%) of the fee will be paid on completion of physical verification of all the Inventory/movable assets and submission of reports by 31.03.2026 and on verification by Head of F&A department. Balance fifty percent (50%) of the fee will be released on completion of all the jobs and on verification of materials deptt. The payment will be verified and released by F&A Department, Bathinda against submission of invoice along with supporting documents in original, subject to deduction of Income Tax at source as applicable.
2. GST, as applicable for the work under the contract shall be reimbursed by NFL after GST Invoice is uploaded and submitted on GST portal through GSTR-1 and GSTR-3B and appearing in GSTR-2A of our GST portal.
3. The rates to be quoted by the party should be inclusive of GST.
4. LTE clause (Registration/ Empanelment Requirement): Contract shall be awarded to only such party who are registered/ approved/ enlisted with NATIONAL FERTILIZERS LIMITED for the required category on the date of bid opening. Prospective bidders (if not already registered), are advised to get themselves registered with the said registration authority before bid opening date". (It is certified that the registration is granted by the registering agency as per Rule 150 of GFR following a fair, transparent and reasonable procedure).

Preference to Make in India

To encourage 'Make in India' and promote manufacturing and production of goods and services in India with a view to enhancing income and employment, Department of Promotion of Industry and Internal Trade (DPIIT), Ministry of Commerce and Industry, Government of India, issued Public Procurement (Preference to Make in India), Order 20171. The order is issued pursuant to Rule 153 (iii) of GFR, 2017. The Order is applicable on the procurement of Goods, Works and Services. For the purpose of this Order:-

- a) '*L1*' means the lowest tender or lowest bid or the lowest quotation received in a tender, bidding process or other procurement solicitation as adjudged in the evaluation process as per the tender or other procurement solicitation.
- b) '*Margin of purchase preference*' means the maximum extent to which the price quoted by a "Class-I local supplier" may be above the L1 for the purpose of purchase preference. It has been fixed as 20 (twenty) percent.
- c) '*Nodal Ministry*' means the Ministry or Department identified pursuant to this order in respect of a particular item of goods or services or works.
- d) '*Procuring entity*' means a Ministry or department or attached or subordinate office of, or autonomous body controlled by, the Government of India and includes Government companies as defined in the Companies Act.
- e) '*Works*' means all works as per Rule 130 of GFR- 2017, and will also include '*turnkey works*'.
- i) **Eligibility of 'Class-I local supplier'/ 'Class-II local supplier'/ 'non-local suppliers' for different types of procurement.**
 - a) In procurement of all goods, services or works in respect of which the Nodal ministry/Department has communicated that there is sufficient local capacity and local competition, only 'Class-I local supplier', shall be eligible to bid irrespective of purchase value.
 - b) Only 'Class-I local supplier' and 'Class-II local supplier', shall be eligible to bid in procurements undertaken by procuring entities, except when Global tender enquiry has been issued. In global tender enquiries, 'Non-local suppliers' shall also be eligible to bid along with 'Class-I local suppliers' and 'Class-II local suppliers'. In procurement of all goods, services or works, not covered by sub-para (i)(a) above, and with estimated value of purchases less than Rs. 200 Crore, in accordance with Rule 161(iv) of GFR, 2017, Global tender enquiry shall not be issued except with the approval of competent authority as designated by Department of Expenditure.
 - c) For the purpose of this Order, works includes Engineering, Procurement and Construction (EPC) contracts and services include System Integrator (SI) contracts.

ii) Purchase Preference

- a) Subject to the provisions of the Order and to any specific instructions issued by the Nodal

Ministry or in pursuance of the Order, purchase preference shall be given to 'Class-I local supplier' in procurements undertaken by procuring entities in the manner specified here under.

b) In the procurements of goods or works, which are covered by para (i) (b) above and which are divisible in nature, the 'Class-I local supplier' shall get purchase preference over 'Class-II local supplier' as well as 'Non-local supplier', as per following procedure:

1. Among all qualified bids, the lowest bid will be termed as L1. If L1 is 'Class-I local supplier', the contract for full quantity will be awarded to L1.

2. If L1 bid is not a 'Class-I local supplier', 50 (fifty) percent of the order quantity shall be awarded to L1. Thereafter, the lowest bidder among the 'Class-I local supplier' will be invited to match the L1 price for the remaining 50 (fifty) percent quantity subject to the Class-I local supplier's quoted price falling within the margin of purchase preference, and contract for that quantity shall be awarded to such 'Class-I local supplier' subject to matching the L1 price. In case such lowest eligible 'Class-I local supplier' fails to match the L1 price or accepts less than the offered quantity, the next higher 'Class-I local supplier' within the margin of purchase preference shall be invited to match the L1 price for remaining quantity and so on, and contract shall be awarded accordingly. In case some quantity is still left uncovered on Class-I local suppliers, then such balance quantity may also be ordered on the L1 bidder.

c) In the procurements of goods or works, which are covered by para (i)(b) above and which are not divisible in nature, and in procurement of services where the bid is evaluated on price alone, the 'Class-I local supplier' shall get purchase preference over 'Class-II local supplier' as well as 'Non-local supplier', as per following procedure:

1. Among all qualified bids, the lowest bid will be termed as L1. If L1 is 'Class-I local supplier', the contract will be awarded to L1.

2. If L1 is not 'Class-I local supplier', the lowest bidder among the 'Class-I local supplier', will be invited to match the L1 price subject to Class-I local supplier's quoted price falling within the margin of purchase preference, and the contract shall be awarded to such 'Class-I local supplier' subject to matching the L1 price.

3. In case such lowest eligible 'Class-I local supplier' fails to match the L1 price, the 'Class-I local supplier' with the next higher bid within the margin of purchase preference shall be invited to match the L1 price and so on and contract shall be awarded accordingly. In case none of the 'Class-I local supplier' within the margin of purchase preference matches the L1 price, the contract may be awarded to the L1 bidder.

4. "Class-II local supplier" will not get purchase preference in any procurement, undertaken by procuring entities.

iii) Applicability in tenders where contract is to be awarded to multiple bidders

In tenders where contract is awarded to multiple bidders subject to matching of L1 rates or otherwise, the 'Class-I local supplier' shall get purchase preference over 'Class-II local supplier' as well as 'Non-local supplier', as per following procedure:

- a) In case there is sufficient local capacity and competition for the item to be procured, as notified by the nodal Ministry, only Class I local suppliers shall be eligible to bid. As such, the multiple suppliers, who would be awarded the contract, should be all and only 'Class I Local suppliers'.
- b) In other cases, 'Class II local suppliers' and 'Non local suppliers' may also participate in the bidding process along with 'Class I Local suppliers' as per provisions of the Order.
- c) If 'Class I Local suppliers' qualify for award of contract for at least 50 (fifty) percent of the tendered quantity in any tender, the contract may be awarded to all the qualified bidders as per award criteria stipulated in the bid documents. However, in case 'Class I Local suppliers' do not qualify for award of contract for at least 50 (fifty) percent of the tendered quantity, purchase preference should be given to the 'Class I local supplier' over 'Class II local suppliers'/ 'Non local suppliers' provided that their quoted rate falls within 20 (twenty) percent margin of purchase preference of the highest quoted bidder considered for award of contract so as to ensure that the 'Class I Local suppliers' taken in totality are considered for award of contract for at least 50 (fifty) percent of the tendered quantity.
- d) First purchase preference has to be given to the lowest quoting 'Class-I local supplier', whose quoted rates fall within 20 (twenty) percent margin of purchase preference, subject to its meeting the prescribed criteria for award of contract as also the constraint of maximum quantity that can be sourced from any single supplier. If the lowest quoting 'Class-I local supplier', does not qualify for purchase preference because of aforesaid constraints or does not accept the offered quantity, an opportunity may be given to next higher 'Class-I local supplier', falling within 20 (twenty) percent margin of purchase preference, and so on.
- e) To avoid any ambiguity during bid evaluation process, the procuring entities may stipulate its own tender specific criteria for award of contract amongst different bidders including the procedure for purchase preference to 'Class-I local supplier' within the broad policy guidelines stipulated in sub-paras above.
- iv) **Exemption of small purchases:** Notwithstanding anything contained in paragraph (i), procurements where the estimated value to be procured is less than Rs. 5 lakhs shall be exempt from the Order. However, it shall be ensured by procuring entities that procurement is not split for the purpose of avoiding the provisions of this Order.
- v) **Minimum local content:** The 'local content' requirement to categorize a supplier as 'Class-I local supplier' is minimum 50 (fifty) percent. For 'Class-II local supplier', the 'local content' requirement is minimum 20 (twenty) percent. Nodal Ministry/ Department may prescribe only a higher percentage of minimum local content requirement to categorize a supplier as 'Class-I local supplier'/ 'Class-II local supplier'. For the items, for which Nodal Ministry/ Department has not prescribed higher minimum local content notification under the Order, it shall be 50 (fifty) percent and 20 (twenty) percent for 'Class-I local supplier'/ 'Class- I local supplier' respectively.
- vi) **Requirement for specification in advance:** The minimum local content, the margin of purchase preference and the procedure for preference to Make in India shall be specified in the notice inviting tenders or other form of procurement solicitation and shall not be varied during a

particular procurement transaction.

- vii) **Government E-marketplace:** In respect of procurement through the Government E- marketplace (GeM) shall, as far as possible, specifically mark the items which meet the minimum local content while registering the item for display, and shall, wherever feasible, make provision for automated comparison with purchase preference and without purchase preference and for obtaining consent of the local supplier in those cases where purchase preference is to be exercised.

viii) **Verification of local content:**

- a) The 'Class-I local supplier'/ 'Class-II local supplier' at the time of tender, bidding or solicitation shall be required to indicate percentage of local content and provide self- certification that the item offered meets the local content requirement for 'Class- I local supplier'/ 'Class-II local supplier', as the case may be. They shall also give details of the location(s) at which the local value addition is made.
 - b) In cases of procurement for a value in excess of Rs. 10 crores, the 'Class-I local supplier'/ 'Class-II local supplier' shall be required to provide a certificate from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content.
 - c) Decisions on complaints relating to implementation of this Order shall be taken by the competent authority which is empowered to look into procurement-related complaints relating to the procuring entity.
 - d) Nodal Ministries may constitute committees with internal and external experts for independent verification of self-declarations and auditor's/ accountant's certificates on random basis and in the case of complaints.
 - e) Nodal Ministries and procuring entities may prescribe fees for such complaints.
 - f) False declarations will be in breach of the Code of Integrity under Rule 175(1)(i)(h) of the General Financial Rules for which a bidder or its successors can be debarred for up to two years as per Rule 151 (iii) of the General Financial Rules along with such other actions as may be permissible under law.
 - g) A supplier who has been debarred by any procuring entity for violation of the Order shall not be eligible for preference under the Order for procurement by any other procuring entity for the duration of the debarment. The debarment for such other procuring entities shall take effect prospectively from the date on which it comes to the notice of other procurement entities, in the manner prescribed under paragraph (h) below.
 - h) The Department of Expenditure shall issue suitable instructions for the effective and smooth operation of this process, so that:
1. The fact and duration of debarment for violation of the Order by any procuring entity are promptly brought to the notice of the Member-Convenor of the Standing Committee and the Department of

Expenditure through the concerned Ministry /Department or in some other manner;

2. on a periodical basis such cases are consolidated and a centralized list or decentralized lists of such suppliers with the period of debarment is maintained and displayed on website(s);
3. in respect of procuring entities other than the one which has carried out the debarment, the debarment takes effect prospectively from the date of uploading on the website(s) in the such a manner that ongoing procurements are not disrupted.

ix) Specifications in Tenders and other procurement solicitations:

- a) Every procuring entity shall ensure that the eligibility conditions in respect of previous experience fixed in any tender or solicitation do not require proof of supply in other countries or proof of exports.
- b) Procuring entities shall endeavour to see that eligibility conditions, including on matters like turnover, production capability and financial strength do not result in unreasonable exclusion of 'Class-I local supplier'/ 'Class-II local supplier' who would otherwise be eligible, beyond what is essential for ensuring quality or creditworthiness of the supplier.
- c) Procuring entities shall review all existing eligibility norms and conditions with reference to sub-paragraphs (viii) (a) and (b) above.

d) Reciprocity Clause

1. When a Nodal Ministry/Department identifies that Indian suppliers of an item are not allowed to participate and/ or compete in procurement by any foreign government, due to restrictive tender conditions which have direct or indirect effect of barring Indian companies such as registration in the procuring country, execution of projects of specific value in the procuring country etc., it shall provide such details to all its procuring entities including CMDs/CEOs of PSEs/PSUs, State Governments and other procurement agencies under their administrative control and GeM for appropriate reciprocal action.
2. Entities of countries which have been identified by the nodal Ministry/Department as not allowing Indian companies to participate in their Government procurement for any item related to that nodal Ministry shall not be allowed to participate in Government procurement in India for all items related to that nodal Ministry/ Department, except for the list of items published by the Ministry/ Department permitting their participation.
3. The stipulation in (2) above shall be part of all tenders invited by the Central Government procuring entities stated in (1) above. All purchases on GeM shall also necessarily have the above provisions for items identified by nodal Ministry/ Department.
4. State Governments should be encouraged to incorporate similar provisions in their respective tenders.
5. The term 'entity' of a country shall have the same meaning as under the FDI Policy of DPIIT as amended from time to time.

- e) Specifying foreign certifications/ unreasonable technical specifications/ brands/ models in the bid document is restrictive and discriminatory practice against local suppliers. If foreign certification is required to be stipulated because of non-availability of Indian Standards and/or for any other reason, the same shall be done only after written approval of Secretary of the Department concerned or any other Authority having been designated such power by the Secretary of the Department concerned.
- f) “All administrative Ministries/Departments whose procurement exceeds Rs. 1000. Crore per annum shall notify/ update their procurement projections every year, including those of the PSEs/PSUs, for the next 5 years on their respective website.”
- x) **Action for non-compliance of the Provisions of the Order:** In case restrictive or discriminatory conditions against domestic suppliers are included in bid documents, an inquiry shall be conducted by the Administrative Department undertaking the procurement (including procurement by any entity under its administrative control) to fix responsibility for the same. Thereafter, appropriate action, administrative or otherwise, shall be taken against erring officials of procurement entities under relevant provisions. Intimation on all such actions shall be sent to the Standing Committee.
- xi) **Assessment of supply base by Nodal Ministries:** The Nodal Ministry shall keep in view the domestic manufacturing / supply base and assess the available capacity and the extent of local competition while identifying items and prescribing the higher minimum local content or the manner of its calculation, with a view to avoiding cost increase from the operation of this Order.
- xii) **Increase in minimum local content:** The Nodal Ministry may annually review the local content requirements with a view to increasing them, subject to availability of sufficient local competition with adequate quality.
- xiii) **Manufacture under license/ technology collaboration agreements with phased indigenization**
- a) While notifying the minimum local content, Nodal Ministries may make special provisions for exempting suppliers from meeting the stipulated local content if the product is being manufactured in India under a license from a foreign manufacturer who holds intellectual property rights and where there is a technology collaboration agreement / transfer of technology agreement for indigenous manufacture of a product developed abroad with clear phasing of increase in local content.
- b) In procurement of all goods, services or works in respect of which there is substantial quantity of public procurement and for which the nodal ministry has not notified that there is sufficient local capacity and local competition, the concerned nodal ministry shall notify an upper threshold value of procurement beyond which foreign companies shall enter into a joint venture with an Indian company to participate in the tender. Procuring entities, while procuring such items beyond the notified threshold value, shall prescribe in their respective tenders that foreign companies may enter into a joint venture with an Indian company to participate in the tender. The procuring Ministries/Departments shall also make special provisions for

exempting such joint ventures from meeting the stipulated minimum local content requirement, which shall be increased in a phased manner.

xiv) **Powers to grant exemption and to reduce minimum local content:** The administrative Department undertaking the procurement (including procurement by any entity under its administrative control), with the approval of their Minister-in charge, may by written order, for reasons to be recorded in writing,

1. reduce the minimum local content below the prescribed level; or
2. reduce the margin of purchase preference below 20 (twenty) percent; or
3. exempt any particular item or supplying entities from the operation of this Order or any part of the Order.

A copy of every such order shall be provided to the Standing Committee and concerned Nodal Ministry / Department. The Nodal Ministry / Department concerned will continue to have the power to vary its notification on Minimum Local Content.

xv) **Directions to Government companies:** In respect of Government companies and other procuring entities not governed by the General Financial Rules, the administrative Ministry or Department shall issue policy directions requiring compliance with this Order.

xvi) **Standing Committee.** A standing committee is hereby constituted with the following membership: Secretary, Department for Promotion of Industry and Internal Trade-Chairman Secretary, Commerce-Member Secretary, Ministry of Electronics and Information Technology-Member Joint Secretary (Public Procurement), Department of Expenditure- Member Joint Secretary (DPIIT)-Member-Convenor The Secretary of the Department concerned with a particular item shall be a member in respect of issues relating to such item. The Chairman of the Committee may co-opt technical experts as relevant to any issue or class of issues under its consideration.

xvii) **Removal of difficulties:** Ministries /Departments and the Boards of Directors of Government companies may issue such clarifications and instructions as may be necessary for the removal of any difficulties arising in the implementation of the Order.

xviii) **Ministries having existing policies:** Where any Ministry or Department has its own policy for preference to local content approved by the Cabinet after 1st January 2015, such policies will prevail over the provisions of the Order. All other existing orders on preference to local content shall be reviewed by the Nodal Ministries and revised as needed to conform to this Order, within two months of the issue of this Order.

xix) **Transitional provision:** The Order shall not apply to any tender or procurement for which notice inviting tender or other form of procurement solicitation has been issued before the issue of this Order. (Rule 153 of GFR 2017) (Note: 1Latest revision to the Order notified vide OM No. P-45021/2/2017-PP (BEII) issued by DPIIT, dated 16.09.2020) [Buyer is advised to refer latest guidelines, if any, issued by the Ministry/ Corporate Office].

Model Clauses for Tenders

I. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority.

II. “Bidder” (including the term ‘tenderer’, ‘consultant’ or ‘service provider’ in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

III. “Bidder from a country which shares a land border with India” for the purpose of this Order means:

- a. An entity incorporated, established or registered in such a country; or
- b. A subsidiary of an entity incorporated, established or registered in such a country; or
- c. An entity substantially controlled through entities incorporated, established or registered in such a country; or
- d. An entity whose beneficial owner is situated in such a country; or
- e. An Indian (or other) agent of such an entity; or
- f. A natural person who is a citizen of such a country; or
- g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.

IV. The beneficial owner for the purpose of (iii) above will be as under:

- 1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

Explanation—

- a. “Controlling ownership interest” means ownership of or entitlement to more than twenty-five per cent, of shares or capital or profits of the company;
- b. “Control” shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders

agreements or voting agreements;

2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;
3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;
4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;
5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

V. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.

VI. [To be inserted in tenders for Works contracts, including Turnkey contracts] The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority. Model Certificate for Tenders (for transitional cases as stated in para 3 of this Order).

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I hereby certify that this bidder is not from such a country and is eligible to be considered."

Model Certificate for Tenders

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

Model Certificate for Tenders for Works involving possibility of sub-contracting:

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority and will not subcontract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

Model Certificate for GeM:

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this vendor/ bidder is not from such a country or, is not from such a country, has been registered with the Competent Authority. I hereby certify that this vendor/ bidder fulfills all requirements in this regard and is eligible to be considered for procurement on GeM. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

[Buyer is advised to refer latest guidelines, if any, issued by the Ministry/ Corporate Office].

Public Procurement Policy for Micro and Small Enterprises (MSEs):**Reservation of specific items for procurement from Micro and Small Enterprises (MSE)**

To enable wider dispersal of enterprises in the country, particularly in rural areas, the Central Government Ministries or Departments or Public Sector Undertakings shall continue to procure items reserved for procurement exclusively from MSE (presently 358 (three hundred and fifty-eight) items including eight items of Handicrafts) from Micro and Small Enterprises, which have been reserved for exclusive purchase from them. The latest list may be seen from the website of the MSME Ministry¹. Ministry of MSME has clarified that the laminated paper Gr.I,II and III are not covered under the paper conversion product (SI.No.202) of the Public Procurement Policy². For locating the sources of such reserved items, NSIC may be contacted.

Public Procurement Policy for Micro and Small Enterprises (MSEs)

- i) From time to time, the Government of India (Procuring Entity) lays down procurement policies to help inclusive national economic growth by providing long term support to micro, small and medium enterprises and disadvantaged sections of society. The Procurement Policy for Micro and Small Enterprises, 2012 [amended 2018 and 2021] has been notified by the Government in exercise of the powers conferred in Section 11 of the Micro, Small and Medium Enterprises Development (MSMED) Act, 2006. Details of the policy along with the amendments issued in 2018 and 2021 are available on the MSME website³.
 - ii) Micro and Small Enterprises (MSEs) registered under Udyam Registration are eligible to avail the benefits under the policy.
 - iii) The Policy is applicable to all the Central Government Ministries/ Departments/ CPSUs. However, the policy is not applicable to State Government Ministries/ Departments/PSUs.
- 1) To reduce transaction cost of doing business, MSEs will be facilitated by providing them tender documents free of cost, exempting MSEs from payment of earnest money deposit, adopting e-procurement to bring transparency in tendering process. However, exemption from paying Performance Bank Guarantee is not covered under the policy. MSEs may also be given relaxation in prior turnover and prior experience criteria during the tender process, subject to meeting of quality and technical specifications. However, there may be circumstances (like procurement of items related to public safety, health, critical security operations and equipment, etc.) where procuring entity may prefer the vendor to have prior experience rather than giving orders to new entities⁴.
 - 2) Chapter V of the MSMED Act, 2006 also has provision for ensuring timely payments to the MSE suppliers. The period agreed upon for payment must not exceed forty-five days after the supplies. For delays in payment the buyer shall be liable to pay compound interest to the supplier on the delayed amount at three times of the bank rate notified by the Reserve Bank.

For arbitration and conciliation regarding recovery of such payments and interests, Micro and Small Enterprises Facilitation Council has been setup in states.

- 3) In tender, participating Micro and Small Enterprises (MSE) quoting price within price band of L1+15 (fifteen) per cent shall also be allowed to supply a portion of requirement by bringing down their price to L1 price in a situation where L1 price is from someone other than a MSE and such MSE shall be allowed to supply up to 25(twenty five) per cent of total tendered value. The 25(twenty five) per cent quantity is to be distributed proportionately among these bidders, in case there are more than one MSEs within such price band.
- 4) Within this 25% (Twenty Five Percent) quantity, a purchase preference of four (4) per cent s reserved for MSEs owned by Scheduled Caste (SC)/Scheduled Tribe (ST) entrepreneurs and three (3) percent is reserved for MSEs owned by women entrepreneur (if they participate in the tender process and match the L1 price).However, in event of failure of such MSEs to participate in tender process or meet tender requirements and L1 price, four percent sub-target for procurement earmarked for MSEs owned by SC/ST entrepreneurs and three (3) percent earmarked to women owned by SC/ ST entrepreneurs:
 - a) In case of proprietary MSE, proprietor(s) shall be SC /ST;
 - b) In case of partnership MSE, the SC/ ST partners shall be holding at least 51% (fifty-one percent) shares in the unit;
 - c) In case of Private Limited Companies, at least 51% (fifty-one percent) share shall be held by SC/ ST promoters.
 - iv) If subcontract is given to MSEs, it will be considered as procurement from MSEs.
 - v) In case of tender item cannot be split or divided, etc. the MSE quoting a price within the band L1+15% may be awarded for full/ complete supply of total tendered value to MSE, considering the spirit of the Policy for enhancing Govt. Procurement from MSEs.
 - vi) To develop MSE vendors so as to achieve their targets for MSEs procurement, Central Government Ministries /Departments /PSUs shall take necessary steps to develop appropriate vendors by organizing Vendor Development Programmes (VDPs) or Buyer-Seller Meets focused on developing MSEs for procurement through the Government e-Marketplace (GeM) portal. In order to develop vendors belonging to MSEs for Public Procurement Policy, the Ministry of MSME is regularly organizing State Level VDPs and National Level VDPs under the Procurement and Marketing Support Scheme. For enhancing participation of MSEs owned by SCs /STs/ Women in Government procurement, Central Government Ministries/ Departments/ CPSUs have to take the following steps:
 - a) Special Vendor Development Programmes/ Buyer-Seller Meets would be conducted by Departments/ CPSUs for SC/STs and Women.
 - b) Outreach programmes will be conducted by National Small Industries Corporation (NSIC) to cover more and more MSEs from SC/STs under its schemes of consortia formation; and
 - c) NSIC would open a special window for SCs/ STs under its Single Point Registration Scheme (SPRS).

- d) A National SC/ST hub scheme was launched in October, 2016, for providing handholding support to SC/ST entrepreneur which is being coordinated /implemented by the NSIC under this Ministry.
- vii) Where any Aggregator has been appointed by the Ministry of MSME, themselves quote on behalf of some MSE units, such offers will be considered as offers from MSE units and all such facilities would be extended to these also.
- viii) This Policy is meant for procurement of only goods produced and services rendered by MSEs. Traders/ distributors/ sole agent/ Works Contract are excluded from the purview of the policy.
- ix) **Exemptions from the policy:** Given their unique nature, defence armament imports shall not be included in computing 25(twenty five) per cent goal for Ministry of Defence. In addition, defence equipments like weapon systems, missiles, etc. shall remain out of purview of such Policy of reservation. Monitoring of goals set under the policy will be done, in so far as they related to Defense sector, by Ministry of Defense itself in accordance with suitable procedures to be established by them.
- x) To monitor the progress of procurement by Central Government Ministries/ Departments and CPSUs from MSEs, Ministry of MSME has launched the MSME ‘Sambandh’⁵ Portal on 8th December, 2017 for uploading procurement details by all CPSUs on a monthly and an annual basis which is regularly monitored by the Ministry.
- xi) To redress the grievances of MSEs related to non-compliance of the Policy a Grievance cell named “CHAMPION Portal” has been set up in the Ministry of MSME.

(Note: ¹ <http://www.dcmsme.gov.in/schemes/Listof358itemsReserved.pdf> ²Policy Circular

No. 21(6)/2016-MA dated 26.05.2016 ³<http://dcmsme.gov.in/pppm.htm.aspx>

⁴Notified vide OM No.F.20/2/2014-PPD(Pt.) issued by Department of Expenditure dated 29.09.2016.

⁵https://sambandh.msme.gov.in/PPP_Index.aspx)

[Buyer is advised to refer latest guidelines, if any, issued by the Ministry/ Corporate Office].

नेशनल फर्टिलाइजर्स लिमिटेड, बठिंडा-151003

F&A विभाग

Ref. No. NFB/PV/2025-26/

Dated: **01.03.2025**

Name of the Work: Appointment of Physical Verifier for Stock Verification/Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for the F.Y. 2025-26.

Scope of work:

SEPERATE SHEET ATTACHED

Annexure-XVII

Audit Programme of Stock Verification of Bathinda Unit for the FY 2025-26

Scope of work for Stock Verification/ Physical Verification of Bulk Materials, Stores, Spares etc. and Moveable Assets of all Manufacturing Units for the year 2025-26

1. Categories of items to be verified:

Categories of items	Periodicity	Location
Raw Materials, Packing Materials and Chemicals.	Quarterly basis ending 30 th June, 30 th Sep., 31 st Dec., and 31 st March. (Annexure-1(C))	Respective Plants i.e. Urea Silo & Bagging Plant, Ammonia Storage Tanks, Coal Yard, Storage Tanks (Sulphuric Acid, Caustic soda, Diesel, Petrol etc.), Neem Oil Tanks etc or any other materials as declared/ going to be declared by NFL.
Finished & Semi-Finished goods.		
Stores, Spare Parts & Valuable Scrap.	Once a year as per category wise % age specified in para 2.B.2	Different custodies in Main Stores.
Movable Assets in Plant and Offices.	Once a year for the items specified in Annexure-1 (V)	Administrative Building, Various Plant Offices in Factory and Guest House, Other Offices in Township

2. Scope of Work:

Scope of work and related terms & conditions are detailed below:-

- A.1) The bulk items like Raw Materials, Packing Materials, Chemicals (Caustic soda, Sulphuric Acid), Finished, Semi-finished & By-Products, Coal, Bags, Petrol, Diesel are required to be verified on quarterly basis as indicated in Para 1. Verification of these items shall be done as per procedure prescribed under para 4.

B.1) Categories of inventory items are given at **Annexure-1(i)**.

B.2) Physical Verification of stores and spares mentioned in Para 1 above will be done on selective basis according to ABC analysis as per following criteria:

Category of Items	Stock Value	%age to be verified
A	Rs. 50,000 & above	100
B	Rs.20,000 to 50,000	50
C	Rs.20,000 & below	33
	Valuable Scrap (Annexure-1(B))	100

B.3) The verifier will submit a report based on a test check that maximum/minimum and reordering levels are fixed realistically.

C.1) Before taking up the verification of a particular category of stock items, the physical verifier would compare the balances of the Bin Card with that of the Price Stores Ledger i.e. inventory of 30.09.2025. The discrepancies, if any, be reported to the Officer In-charge (Stores).

C.2) For this purpose the Stock Verifiers would be provided with the computer output of inventory holding as on 30.09.2025(along with soft copy).They would be required to mark ‘D’ indicating discrepancy against the items where balances in the computer statement are found to be at variance with the balance as per Bin Card. After such link up they would be required to hand over the complete statement of each category to the Officer In-charge (Stores) after appending a certificate at the end as under:

Certified that based on our linkup of the balances in this statement with those in Bin Card, we find_____no. of items with variation, which have been marked ‘D’ in this statement.

D) The job involves verification of various items by counting, weighing, measuring, dip method/ level indicators and volume method etc.

E) The stock verifier would be required to verify only those items, which exist in the inventory as on 30.09.2025.

3. Coordination of the work:

The physical verification work would be co-coordinated as under:

Categories of items	Designated Officers
Bulk Material and Finished, Semi-finished/By Products.	HOD (Prod.) or his nominee.
Stores and Spare Parts.	In-charge Stores, HoD(Materials) & HoD(F&A)
Moveable Assets in Plant and Offices / Guest house.	HoD (Admn.)& HOD (F&A).

4. Method of Verification:

- A.1) The verifier will not take Bin Card balance before actual physical verification.
- A.2) The stock verifier will physically count/weigh, measure and take dip readings of the stocks for which required assistance will be given by Store Keepers and will record the same in physical verification slip (as per Annexure-1(ii)). Separate stock taking slip for each item will be prepared in duplicate and signed both by stock verifier as well as official in charge of the custody.
- A.3) The verifier would also check the correctness of location as indicated in the Bin Card. Shall there be a difference, an item wise list of discrepancies would be made out and handed over to Officer In Charge (Stores).
- B.1) Completing physical verification of a particular code of materials as per programme a red line will be drawn on Bin card leaving four lines under the last entry. The space of four lines will be utilized for the entries which are omitted in the Bin Card or to correct other clerical mistakes in balancing etc. However, the verifier shall also put stamp/initials while certifying the balance & indicate the physical verification slip number to enable cross -reference.
- B.2) During the process of verification of a particular category of stores, no issue or receipt will be carried out without the prior approval of verifier. Efforts will be made to keep issue/receipt to the minimum during the period of verification of that particular code. In case the issue is unavoidable the voucher will be passed on to the verifier who will mark in red ink as AST (After stock taking) or BST (Before stock taking) and sign the same. AST would mean that the items have been counted and as such this voucher would be posted after the physical balance has been recorded, below the red line on the Bin Card. BST would mean the item has not been counted and the voucher may be entered above the red line.
- B.3) Before posting the slip on the Bin card, all the slips shall be arranged serially in descending order of the code nos. This will reveal the slips having same code on more than one slip. Wherever there is more than one slip having the same code no. the balances of such slips should be clubbed in one slip

before posting and the consolidated total should be posted on the Bin card.

- C) After the verification is completed for all items under a code, the stock taking sheet shall be prepared from item wise slips. Bin card and physical balance as per the verification slip will be recorded on the stock taking sheet (as per Annexure-1(iii)). Separate Stock taking Sheet will be prepared for each inventory Code, covering all the items there under. Simultaneously balance from the Bin card will also be noted in the Stock taking Sheet and discrepancies will be worked out. The stock taking sheet will be prepared in triplicate. One copy of the stock taking sheet will be furnished to Head of F&A deptt., other copy to In charge Stores and third copy will be retained by the Stock Verifier. In charge Stores will arrange to sort out these discrepancies. In the case of omission of any issue notes /receipts vouchers/ clerical mistakes in the stock taking card, necessary corrections will be carried out in the Stock taking Card which will be initialed by Store Keeper and Stock Verifier.
- D.1) A final list of shortages / excesses will be prepared in the Performa (as per Annexure-1(iv), in triplicate which will be distributed as in the case of stock taking sheet mentioned above.
- D.2) While conducting stock verification, stock verifier shall report in the Remarks Column of the format at annexure IV, obsolete/ unserviceable /life expired items, if any, included in the inventory.
- E) The Physical Verification of coal and finished goods in such cases will be done by the Survey method by a committee constituted and notified by Chief Manager/Dy. General Manager (Production) in which apart from Stock Verifiers, representatives from Civil Engineering, Production, Stores and F&A Department will be taken. The bulk density of each heap shall be determined by test checks and the volume of the heap will be converted into weight based upon bulk density.
- F) Certain materials are issued to the consuming department in full immediately on receipt and remain in the custody of the consuming department. These materials are LPG and Diesel etc. The physical verification of these items shall also be done and the representatives of the Production Department will be associated in such cases apart from the representative of the Stores Deptt. All other procedures as described above shall be followed in these cases also. Physical verification of Petrol, Diesel and Ammonia would also be conducted through a committee on the lines, required for other bulk materials. (Refer Para E).
- G) Inventory as on 30.09.2025 would be made available to Stock Verifier for linking up the balances with the Bin Card as on 30.09.2025 of items categorized as stock items. He would submit a report to **Head of Materials deptt.** with a copy to **Head of F&A deptt.** Of those items where there are differences for necessary rectification. While preparing the final report as per procedure, the physical verifier would ensure that the necessary adjustments, for the differences pointed out have been affected in the Bin Card. Cases of non compliances be reported.
- H.1) Physical verification of all moveable fixed assets, the categories of which shall be indicated at **Annexure-1(v)**, shall be carried out by the Physical Verifier. Physical balances of assets shall be

noted in the stock taking sheet in triplicate as per **Annexure-1(vi)**, which will be signed both by the stock verifier and the representatives of the concerned department. One copy of the stock taking sheet shall be handed over to the In-charge of the Plant. Second copy shall be forwarded to the Accounts Department and the third copy shall be retained by the Stock Verifier.

H. 2) Physical balances will be compared and reconciled with the records maintained by the concerned Department of assets verified, and also with Assets Ledgers maintained by the Accounts Department.

H. 3) Surplus, Obsolete, Unserviceable & Non-moving items included in the inventory shall be identified and a list of the same submitted as per **Annexure-1(vii)**.

5. Facilities to be provided by NFL:

- a) National Fertilizers Limited would provide necessary scales, weighing machines, measuring tapes and truck/trolley for conducting the physical verification of the stores as and when needed.
- b) Entire workforce required for handling, shifting and checking and/or re-checking of the quantities would be provided by NFL.

6. Time Schedule for Completion of work:

The entire work of physical verification as per stipulated terms and conditions is to be taken up and completed by 28th Feb except bulk materials which are required to be verified on the next day to end of each quarter. The final report for the completed jobs has to be submitted by 31st March for stores, spares and moveable assets. In respect of bulk materials for the fourth quarter of the financial year, there port is to be submitted by 15th April. A copy of the final report may also be sent to the HoD (F&A), Bathinda Unit with details in a format provided at Annexure-1(viii).

7. Staff to be deployed:

- a. To carry out the assigned work as per schedule, the stock verifier would co-coordinate by deputing a team headed by a **qualified Engineer/ Chartered Accountant/ Cost & Management Accountant**.
- b. To ensure completion of assignment as per schedule Stock verifier would further augment the staff strength and to make staff work on Sunday/Holidays/Late Hours, if so required.

8. Compliance of Statutory requirements:

Stock verifier will abide by the statutory provisions applicable to the staff to be employed by them, such as Minimum Wages Act, Contract labour (Abolition & Regulation) Act, Insurance cover for their staff under Workmen's Compensation Act, Employees PF Act, Employees State Insurance Act and other Central/State Govt. Acts as may be applicable from time to time. NFL will have no liability on these accounts.

9. Damages to NFL:

Stock verifier will give proper directions to their staff not to enter in any prohibited area in the plant. Damages to any of the property belonging to NFL due to negligence on their part or on the part of their staff would be compensated by them.

Annexure-1(B)

Verify that points for implementation for storage of valuable scrap as listed below are being complied with and report discrepancies if any:

1. Costly scrap is to be kept in separate strong room with proper double seal system and proper record of opening / closing in association with CISF.
2. In case of valuable scrap, tare weight is not applicable as these scraps are weighted directly on weigh scale and in that case slip is not generated. Only net weight is to be written on the MRV.
3. Origin of valuable scrap shall be mentioned by the User Dept. along with source.
4. The scrap should be returned through the representative of User Department to witness the weight measurement and to sign the MRV.
5. All Material Return Voucher (MRV) of valuable scrap should be complete in all respects and accompanied by documents as listed below:
 - a) Weighment slip of the weigh bridge duly signed by the In charge of Weigh Bridge, user department and CISF personnel depicting the details of gross weight, tare weight and net weight.
 - b) Certification from the User Deptt. to the effect that the material is scraped and has been segregated wherever practicable and cannot be used elsewhere in the plant.
 - c) Origin of the scrap (i.e. Taken out from burnt motor etc.).
6. All Salvage Vouchers (SLV) / Outgoing Gate Passes of Sale Order of valuable scrap would be complete in the following aspects.
 - a) Weighment slip of the weigh bridge duly signed by the In charge Weigh Bridge and CISF personnel depicting the details of gross weight, tare weight and net weight.
 - b) Physical description of the scrap.
 - c) Name and complete address of the consignee.
 - d) Gate Pass / challan details / vehicle No.
7. All MRVs and SLVs / Gate Passes of valuable scraps should be invariably entered in the respective Bin Card / Ledger Sheet in the chronological order with quantity balance maintained and authenticated by the Godown in charge / Officer of Store
Deptt. Separate Bin Cards / Ledger Sheets be maintained for each category / nature of item.
8. Valuable scraps may be kept metal-wise basis.
9. Attachments wherever feasible, should be dismantled by User Department before returning to stores Section according to nature of item. In case of mixed metal scrap which cannot be separated, User Department should indicate approximate quantity of each valuable metal Regarding storage & disposal of such items which are attached with other metal i.e. mixed scrap may be deliberated in detail by unit level committee & formulate the procedure which should be appropriate i.e. in commensurate with the value, volume, weight & pilfer-ability of such scrap material.
10. No change in specification of material or transfer / shifting from one category to other to be done in the Bin Cards / Ledger Sheet without authentication by the User Department. However, User Department shall ensure that correct metal description is entered at first stage in the MRV.

11. MOC / Purity etc. wherever applicable for costly items, like platinum wire etc. as scrap is generally seen by the parties before submission of quotation, and is intimated by User Department.
12. Scrap may be deposited in Stores after removing foreign material mud's etc. i.e. Sulphur Chimney / Paint containers.
13. Costly scrap items of copper, brass or other large items should have item description. MOC percentage composition of different metals, name of department and date of return by User Deptt. Before returning to Stores.
14. There should be correlation between the total quantity issued to the User Department and scrap returned by User Department and this record should be maintained by User Department.

Annexure-1(C)

NATIONAL FERTILIZERS LIMITED:

Name of Unit.....

RESULT OF PHYSICAL VERIFICATION OF BULK MATERIALS, CHEMICALS, FINISHED PRODUCTS AND SEMI-FINISHED PRODUCTS FOR THE QUARTER ENDED.....

S.N .	Description	Unit /Qty	Book Stock	Physical Stock	Excess/ Shortage	Percentage of shortage / excess	Permissible Norms	Excess/ Shortage Value(Rs.)
1.	<u>PACKING MATERIALS</u>							
	a)HDPE Bags	NOS.						
	b)HDPE Bags (Neem Coated Print)	NOS.						
2.	a)COAL-Non-Coking	MT						
	b)Neem Oil	KL						
3.	<u>CHEMICALS & PETRO-CHEMICALS</u>							
	a) Sulphuric Acid	MT						
	b) Caustic Soda Lye	MT						
	c) c) HSD with Prod.	KL						
	d) Petrol(MS)	LT						
	e) HSD with Store	LT						
	f) Others							
4.	<u>FINISHED GOODS</u>							
	a) Urea Plain	MT						
	b) Urea Neem Coated	MT						
5.	CARBON SLURRY	MT						
6.	SEMI FINISHED GOODS							
	Liquid Ammonia	MT						
	Nitric Acid	MT						

ANNEXURE-1(i)**NATIONAL FERTILIZERS LIMITED****CATEGORIES OF MAJOR ITEMS OF INVENTORY****S. No. Description of Materials**

- 1 Tools & Tackles
- 2 Asbestos and joining sheets
- 3 Hardwares
- 4 Pipes and pipe fittings
- 5 Pipe Fittings
- 6 Valves
- 7 Welding & soldering Material
- 8 Raw Materials
- 9 Packing Materials
- 10 Fire Fighting & Safety Equipments
- 11 Construction Material
- 12 Gases & Insulation
- 13 Alloy & Special Steel
- 14 Non Ferrous Material
- 15 Furniture & Fixture
- 16 General Stores Misc.
- 17 General Electrical Stores
- 18 Electrical Cables
- 19 Petrol-Oil and Lubricants
- 20 Telephone Material
- 21 Fuel
- 22 Medical
- 23 Rubber & PVC Material
- 24 Lab Chemicals
- 25 Lab Equipments
- 26 Production Chemicals
- 27 Catalysts
- 28 Paints
- 29 Instrumentation Spares
- 30 Motor & Spares Elect.
- 31 Inverter/ DG Sets
- 32 Jyoti Spares
- 33 Cement Spares
- 34 L&T Spares
- 35 Transformers
- 36 Plant wise spares Electrical items
- 37 Auxiliary Plant to Ammonia Plant & ASU (Nitrogen)

- 38 Ammonia
- 39 Ash/ coal/ Furnace Oil & Material Handling
- 40 Misc. (Common Items for all the above plants such as Bearing Origin. etc.)
- 41 Primary Instrumentation
- 42 Transmitters
- 43 Main Penal Instrument
- 44 Instrument
- 45 Control Valves
- 46 Special Instrument
- 47 Test Equipment & Special Tools
- 48 Material & consumed Material
- 49 Auto spares (Loco Cranes and Pay Loaders)
- 50 Spares for jeep Car, Truck etc.
- 51 Spares for crane
- 52 Spares for construction aid
- 52 Capital Stores
- 53 General Stores
- 54 General Stores (CPP)
- 55 Plant Spares (CPP)
- 56 Mech. Spares
- 57 Mech. (HES)
- 58 Ammonia Plant
- 59 Mech. Workshop / HES
- 60 Mech. Spares CPP & SGP
- 61 O & U Plants

Annexure-1(B)

Verify that points for implementation for storage of valuable scrap as listed below are being complied with and report discrepancies if any:

15. Costly scrap is to be kept in separate strong room with proper double seal system and proper record of opening / closing in association with CISF.
16. In case of valuable scrap, tare weight is not applicable as these scraps are weighted directly on weigh scale and in that case slip is not generated. Only net weight is to be written on the MRV.
17. Origin of valuable scrap shall be mentioned by the User Dept. along with source.
18. The scrap should be returned through the representative of User Department to witness the weight measurement and to sign the MRV.
19. All Material Return Voucher (MRV) of valuable scrap should be complete in all respects and accompanied by documents as listed below:
 - a) Weighment slip of the weigh bridge duly signed by the In charge of Weigh Bridge, user department and CISF personnel depicting the details of gross weight, tare weight and net weight.
 - b) Certification from the User Deptt. to the effect that the material is scraped and has been segregated wherever practicable and cannot be used elsewhere in the plant.
 - c) Origin of the scrap (i.e. Taken out from burnt motor etc.).
20. All Salvage Vouchers (SLV) / Outgoing Gate Passes of Sale Order of valuable scrap would be complete in the following aspects.
 - a) Weighment slip of the weigh bridge duly signed by the In charge Weigh Bridge and CISF personnel depicting the details of gross weight, tare weight and net weight.
 - b) Physical description of the scrap.
 - c) Name and complete address of the consignee.
 - d) Gate Pass / challan details / vehicle No.
21. All MRVs and SLVs / Gate Passes of valuable scraps should be invariably entered in the respective Bin Card / Ledger Sheet in the chronological order with quantity balance maintained and authenticated by the Godown in charge / Officer of Store
Deptt. Separate Bin Cards / Ledger Sheets be maintained for each category / nature of item.
22. Valuable scraps may be kept metal-wise basis.
23. Attachments wherever feasible, should be dismantled by User Department before returning to stores Section according to nature of item. In case of mixed metal scrap which cannot be separated, User Department should indicate approximate quantity of each valuable metal Regarding storage & disposal of such items which are attached with other metal i.e. mixed scrap may be deliberated in detail by unit level committee & formulate the procedure which should be appropriate i.e. in commensurate with the value, volume, weight & pilfer-ability of such scrap material.
24. No change in specification of material or transfer / shifting from one category to other to be done in the Bin Cards / Ledger Sheet without authentication by the User Department. However, User Department shall ensure that correct metal description is entered at first stage in the MRV.

25. MOC / Purity etc. wherever applicable for costly items, like platinum wire etc. as scrap is generally seen by the parties before submission of quotation, and is intimated by User Department.
26. Scrap may be deposited in Stores after removing foreign material mud's etc. i.e. Sulphur Chimney / Paint containers.
27. Costly scrap items of copper, brass or other large items should have item description. MOC percentage composition of different metals, name of department and date of return by User Deptt. Before returning to Stores.
28. There should be correlation between the total quantity issued to the User Department and scrap returned by User Department and this record should be maintained by User Department.

ANNEXURE-1(ii)

Name of the firm of Stock Verifier:

Name of the Unit:

Physical Verification Slip No.

Group_____Location _____Date_____

Category Item Code No.	Description	Unit of Measurement	Quantity	Verifier

Above Quantity has been found after physical verification.

Stock Verifier

Manager/ Sr. Manager (Stores)

ANNEXURE-1(iii)

Name of the firm of Stock Verifier:

Name of the Unit: Stock Taking

Sheet No. _____

Main Inventory Code No. _____ Category of material verified:

Item Code No.	Name of Article	Unit of Measure ment	Actual Stock	Bin Card Balance	Discrepancy		Comments of In-charge Stores	Remarks of the Stock Verifier
					Excess	Shortage		

Certified that all stocks of above items presented for verification

Certified that actual stock have been found on
Actual stocks above are correct
physical verification have been
Found and actual stock correct

Verified from the bin cards and signed.

(In-charge Custody of Material)

(Officer In-charge)
Store Deptt.

(Stock Verifier)

ANNEXURE-1(iv)

Name of the firm of Stock Verifier:

Name of the Unit:

Date:

Report of Discrepancies in Stores Stock Verified at _____

No.	Stock taking Sheet No.	Materials code	Description s of Articles	Unit of Measurement	Actual Stock	Book Balance Bin Card Balance	Discrepancy Excess /Short age	Comment of In-charge Stores	Remarks of the Stock Verifier

(In-charge Custody of Material)

(Officer In-charge)
Store Deptt.

(Stock Verifier)

Annexure-1(v)

LIST OF MOVABLE PPE

120 PLANT AND MACHINERY

- 120018 Workshop Machinery (Mechanical)
- 120019 Workshop Machinery (Electrical)
- 120020 Workshop Machinery (Instrumentation)
- 120021 Construction Equipments
- 120022 Locomotives

130 MISC. EQUIPMENTS (F)

- 130002 Laboratory Equipments
- 130003 Fire Fighting Equipments
- 130004 Store Handling Equipment (Including Weigh Bridge)
- 130005 Safety Equipments
- 130006 Drawing Office & Survey Equipment
- 130007 Canteen Equipments
- 130010 Misc. Equipments (CISF)
- 130013 PRO Equipment
- 130015 Production Equipment
- 130808 Training Centre Equipments

131 MISC. EQUIPMENTS (T)

- 131102 School Equipments
- 131103 Hospital Equipments
- 131104 Guest House / Hostel Equipments
- 131105 Horticulture Equipments

135 FURNITURE / FIXTURE & OFFICE APPLIANCES(F)

- 135001 Office Furniture Fixture
- 135004 Canteen Furniture
- 135805 Training Centre Furniture
- 120035 Office Appliances (Typewriter, Calculator Etc. Factory / Office)
- 120036 Room AC / Cooler / Water Coolers / Refrigerator
- 120042 Residential Electrical Appliances

136 FURNITURE / FIXTURE & OFFICE APPLIANCES (T)

- 136102 Furniture & Fixtures (Hostel / Guest House)
- 136103 Furniture & Fixtures (Hospital)
- 136104 Furniture & Fixtures (School)
- 136107 Furniture & Fixture (CISF)
- 120043 Room AC / Coolers / Water Cooler / Refrigerator Etc. (Residential)
- 120137 Room AC / Coolers / Water Cooler / Refrigerator (Township)

140 VEHICLES(F)

- 140001 Heavy Vehicles

- 140003 Light Vehicles
140004 Motor Cycles / Scooter / Auto Rickshaws
140005 Bicycles / Rickshaws
140006 Soil Testing Vans

PHYSICAL VERIFICATION OF ASSETS AS ON.....

Assets Code	Description	Location / Room No.
10	Chairs -Steel	
11	Chairs revolving	
12	Chairs-moulded	
12	Chair -Sofa	
20	Table—one side drawer	
21	Table—both side drawer	
22	Table—conference room	
23	Table—centre—side tables	
30	Filing Cabinet	
40	Almirah	
41	Book-case	
50	Racks Steel	
51	Racks wooden	
155	Computer—others(specified)	
560	Computer Printers—dot matrix	
570	Voltage stabilizers	
580	Telephone instrument—ITT	
590	Vacuum Cleaner	
370	VCR	
380	Trolley TV stand	
390	Reception / table / counter	
400	Platform scale	
410	Deck stereo	
420	Amplifier	
430	TT Table	
440	Newspaper stand	
450	Bookrack	
460	Library book counter	
470	Radio set	
480	Durries	
490	Drawing Board	
500	Washing Machine	
510	W Locker	

520	Photo phone overhead
530	Minitape with earphone
540	Tube light fittings
550	Computer-Pcs
551	Computer-Pcs / XTs
552	Computer-Pcs ATs
553	Computers-386
554	Computers-406
150	Water Cooler
160	Desert room cooler
180	Postal Franking machine
190	Telex machine
191	Fax machine
200	Cashbox
210	Fans-pedestal/cabin
211	Fans-ceiling
212	Fans-exhaust
220	Photocopier
230	Heat convector
231	Room heater
240	Fixo graph
250	Postal weighting machine
260	Duplicator
270	Refrigerator
280	Deep freezer
290	Speech board & platform
300	Writing board
310	Coffee machine
320	Cooking range
330	Mattresses
340	Carpet
350	Mixer grinder
60	Cots
70	Stools
80	Benches
90	Sofa
100	Air conditioner split
101	Air conditioner window
110	Billiard Table
120	Water Filter
130	Geyser
140	Typewriter Manual
141	Typewriter Electronics

Note: This is an indicative list. Stock Verifier may obtain the updated list from the Unit.

Annexure- 1(vi)

Name of the firm of Stock Verifier:

Report of Physical Verification of Moveable Assets

Assets Account_____Nomenclature_____

Date of verification_____

Sr. No.	Description of Assets	Identifications. of item	Location	Actual Stock	Balance as per Deptt. Record	Balance as Per property Ledger maintained by Accounts	Discrepancy as compared to Property Ledger		Reasons for Discrepancy
							Excess	shortage	
1	2	3	4	5	6	7	8	9	10

Certified that all items under the above Assets have been produced for Physical Verification as per quantity mentioned above.

(Officer In-charge of Assets)

(Stock Verifier)

Annexure-1(vii)

**LIST OF OBSOLETE,SURPLUS, UNSERVICEABLE AND NON-MOVING ITEMS
INCLUDED IN THE INVENTORY AS ON _____**

Name of Unit:-

S. N.	Item Code	Item description	Date of Purchase	Unit of measurement	No. of Items
A	Surplus				
B	Obsolete Items				
C	Unserviceable Items				
D	Non-moving Items:-				
(i)	Morethan5				
(ii)	3-5yrs				
(iii)	1-3Years				

(Officer In-charge of Assets)

(Stock Verifier)

Annexure-1(viii)

SUMMARY REPORT

Details of Items as on 30.09.2025

Category	Total Nos Of Items	No. of Items verified	%age	Remarks
A				
B				
C				

(Officer In-charge of Assets)

(Stock Verifier)

Annexure-2(ii)

Name of Firm of Stock Verifier:

Stock Taking Sheet of Movable Assets (Year 2025-26)

Sheet No.: _____

Assets Accounts Head: _____ Nomenclature: _____ Date of Physical Verification: _____

S. No.	Description of Assets	Identification no. of assets	Location	Unit/M	Physical Stock	Stock As per Deptt. Register	Balance As per assets ledger	Discrepancy As Compared to assets		Reason for discrepancy
								Exc-ess	Shor-tage	

Certified that all items under the above Assets account head have been produced for physical verification as per quantity mentioned above

(Officer Incharge of Assets)
With seal

(Stock Verifier)
With seal

Annexure-2(iii)

Name of Firm of Stock Verifier:

Discrepancy Report of Moveable Fixed Assets (Year 2025-26).

Sr No	Stock Taking Sheet No.	Asset Account Head	Description of Article	U/M	Actual Stock	Balance per Asset Register maintain by Accounts	Discrepancy		Remarks of Stock Verifier
							Excess	Shortage	

(Signature of Stock verifier) With seal

ANNEXURE-XIV**SCHEDULE OF RATES**

Sub: NIT Tender no. NFB/PV/2025-26 dated 01/03/2025 for Rate Contract for Appointment of Physical Verifier for Stock Verification/Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for F.Y. 2025-26 at NFL Bathinda.

Dear Sir,

With reference to above mentioned NIT tender, we hereby submit our Price-Bid as under:

S. No.	Particulars	Rate	Total Value (Rs.)	
		in Rs. (Incl. of GST)	in figures (Incl. of GST)	in words (Incl. of GST)
1	Physical Verification of Bulk Materials, Stores, Spares etc. and Movable Assets for F.Y. 2025-26 at NFL Bathinda		xxx	xxx
II	The rates to be quoted by the party should be inclusive of GST.			
III	Percentage of GST considered above is ____% (to be filled by bidder).			
I/ We hereby confirm that I/ we have read and understood the NIT along with the Annexures and have acquainted ourselves fully with the site conditions, scope of the contract, etc.				
I/ We agree with all the terms & conditions stated therein and confirm that the rates quoted shall remain firm during the validity of the contract.				

Place:

Date:

Authorised Signature with date
Name
Proprietor/Partner
Name of Firm/Company
Address
Tel/ Mobile No.
Email id: